

Zoning Regulations

TOWN OF PANTON, VERMONT

Revised August 13, 2025



Table of Contents

Article I: Enactment, Intent, Repeal of Former Zoning Bylaws, and Definitions	1
Section 110: Enactment.....	1
Section 120: Intent	1
Section 125: Repeal of Former Zoning Bylaws.....	1
Section 130: Definitions.....	1
Article II: Establishment of Zoning Districts and Zoning Map.....	11
Section 210: Establishment of Zoning Districts.....	11
Section 220: Zoning Map	11
Article III: Administration and Enforcement.....	11
Section 300: Application of Regulations	11
Section 301: Exemptions.....	12
Section 310: Administrative Officer.....	13
Section 315: Enforcement: Authority, Penalties, and Remedies	13
Section 320: Zoning Permit.....	15
Section 321: Fees	15
Section 322: Application for a Zoning Permit	15
Section 323: Action by the Administrative Officer.	16
Section 324: Effect of Issuance of a Permit (Statutory Changes).....	17
Section 325: Posting of a Zoning Permit (Statutory Changes).....	17
Section 326: Certificate of Occupancy	17
Section 327: Septic Systems.....	17
Section 328: Penalties	17
Section 330: Appropriate Municipal Panel (Statutory Changes).....	17
Section 331: Planning Commission (Statutory Changes)	18
Section 332: Development Review Board.....	18
SECTION 350: CONDITIONAL USES (Statutory Changes).....	21
Section 351: General Structure.....	21
Section 352: Existing Conditional Uses	21
Section 353: Application for Conditional Use Approval	21
Section 354: Public Notice and Review Procedure.....	21
Section 355: General Criteria for Review.....	22
Section 356: Specific Criteria for Review	22
Section 357: Decision	22
Section 358: Performance Bonds (Revised)	23
Section 361: Deadline for Appeal	23
Section 362: Interested Persons.....	23
Section 363: Notice of Appeal	23
Section 364: Public Notice and Review Procedure.....	23
Section 365: Decision	23
SECTION 370: VARIANCE (Statutory Changes).....	24
Section 371: Application.....	24
Section 372: Public Notice and Review Procedure.....	24
Section 373: Review Criteria.....	24
Section 374: Decision	25
Section 375: Conditions	25
SECTION 380: WAIVERS (Optional Statutory Change).....	25
Section 381: Application.....	25
Section 382: Public Notice and Review Procedure.....	26
Section 383: Review Criteria.....	26
Section 384: Decision	26
Section 385: Conditions	26
Section 392: Applications for Other Approvals.....	27
Section 393: Public Notice and Review	27
Section 394: Review Criteria.....	27
Section 395: Decisions	28

Article IV: Amendments, Interpretation, Effective Date	28
Section 410: Amendments	28
Section 420: Interpretation	28
Section 430: Effective Date	28
Section 440: Severability	29
Article V: Required and General Regulations	29
Section 501: Promote and Protect Affordable Housing	29
Section 502: Mobile Home Parks	29
Section 503: Accessory Apartments	29
Section 504: Group Home or Residential Care Facility	30
Section 505: Existing Small Lots	30
Section 506: Required Frontage on, or Access to, Public Roads or Public Waters	30
Section 507: Home Occupations	30
Section 508: Daycare Facility or Family Childcare Home.....	31
Section 509: Interior Lots.....	32
Section 510: Lots in Two Zoning Districts	32
Section 511: Residential Buildings on Lots	32
Section 512: Non-Conforming Uses and Non-Conforming Structures	32
Section 513: Special Public Use Exceptions.....	33
Section 514: Construction Approved Prior to Adoption of or Amendment to Regulations	33
Section 515: Abandonment of Structures	33
Section 516: Temporary Use and Structures.....	33
Section 517: Farm Labor Housing.....	33
Section 520: Public Utility Structures	34
Section 521: Storage of Flammable Liquids.....	35
Section 522: Gasoline or Motor Vehicle Service Stations	35
Section 523: Campers	35
Section 524: Roadside Agricultural Stands	35
Section 525: Filling Land	36
Section 526: Extraction of Soil, Sand, or Gravel	36
Section 527: Energy Systems	37
Section 528: Planned Unit Development.....	42
Section 535: Campground Permits	43
Section 536: Campground Standards.....	44
Section 542: Reduction of Lot Area	44
Section 543: Required Area or Yards	44
Section 544: Projection in Yards	44
Section 545: Corner Lot Exceptions	44
Section 550: Landscaping	44
Section 560: Grading.....	45
Section 570: Height Restrictions	45
Section 595: Freestanding Dishes and Antennas	45
Article VI: Transportation, Access, Safety and Parking	46
Section 610: Parking in Neighborhood Commercial Zones from Adjacent Properties	46
Section 611: Off-Street Parking Space Requirements.....	46
Section 620: Access Permit.....	46
Section 622: Obstruction of Vision	46
Article VII: Signs, Temporary, Information Regarding Location	47
Section 710: General.....	47
Section 720: Off Premises Signs	47
Section 730: Signs in Residential Districts	47
Section 740: Signs in Commercial Districts	47
Section 760: Computation of Permissible Sign Area	48
Section 770: Traffic, Hazard, Safety, and Obstruction	48
Section 780: Illuminating and Flashing Signs	49
Article VIII: Performance Standards	49
Section 810: Noise	49
Section 820: Glare, Light and Reflection	49

Section 830: Fire, Explosive, and Safety Hazards	49
Section 831: Violations	49
Article IX: Flood Hazard Area Regulations	50
Section 901: Statutory Authorization.....	50
Section 902: Statement of Purpose.....	50
Section 903: Land to Which These Regulations Apply	50
Section 904: Official Flood Hazard Area Map	50
Section 905: Interpretation of District Boundaries	50
Section 906: Permitted Uses.....	50
Section 907: Conditional Uses In Flood Hazard Area	51
Section 908: Permit Requirements and Application Procedures	51
Section 909: Records.....	51
Section 910: Conditional Use Review Application.....	51
Section 911: Public Notice and Review Procedure.....	53
Section 912: Review Criteria for the Development Review Board.....	53
Section 913: Decisions	53
Section 914: Conditions Attached to Approval	53
Section 915: Issuance and Transmission of Permits	55
Section 916: Effective Date of Permits.....	55
Section 917: Appeals.....	55
Section 918: Variance	55
Section 919: Fees	56
Section 920: Warning of Disclaimer of Liability.....	56
Section 921: Precedence of Regulations.....	56
Section 922: Annual Report to Federal Emergency Management Agency.....	56
Section 923: Definitions Specific to the Floodplain Area.....	56
Article X: Zoning Districts.....	58
Section 1001: Residential 2 (R-2)	58
Section 1001 A: Specific Regulations for R-2 District.....	58
Section 1002: Residential 5 (R-5)	59
Section 1002 A: Specific Regulations for R-5 District.....	59
Section 1003: Residential Agricultural 10 (RA-10)	60
Section 1003 A: Specific Regulations for RA-10 District	60
Section 1004: Neighborhood Commercial District (NC-1)	61
Section 1004 A: Specific Regulations for NC-1 District	61

A representative Zoning Map is attached as Appendix A.

Article I: Enactment, Intent, Repeal of Former Zoning Bylaws, and Definitions

Section 110: Enactment

In accordance with the Vermont Municipal and Regional Planning and Development Act, 24 V.S.A., Chapter 117, hereinafter referred to as the "Act", and in accordance with Sections 4401, 4402, and 4410 thereof are hereby established Zoning Regulations for the Town of Panton which are set forth in the text and map that constitute these regulations. These regulations shall be known and cited as the "Town of Panton Zoning Regulations".

Section 120: Intent

It is the intent of these Zoning Regulations to provide for orderly community growth and to further the purposes established in the Panton Town Plan and in the Act, Section 4302.

Section 125: Repeal of Former Zoning Bylaws

The Zoning Bylaws and Zoning Map for the Town of Panton in effect before the adoption of these bylaws and map are hereby amended and replaced in their entirety by these regulations as of the effective date of these regulations.

Section 130: Definitions

Except where specifically defined herein, all words used in these regulations shall carry their customary meanings. Words used in the present tense include the future, and the singular includes the plural; the word "lot" includes "plot"; the word "shall" is mandatory; "occupied" or "used" shall be considered as though followed by "or intended, arranged, or designed to be used or occupied"; "person" includes individual, partnership, association, corporation, company, or organization; and the word "street" is synonymous with "road".

Doubt as to the precise meaning of any word used in these regulations shall be clarified by the definitions contained in current edition of Merriam Webster's Dictionary or equivalent edition.

Abutting Land Owner: A person who owns land in fee simple if that land:

1. Shares a boundary with the tract of land where a proposed or actual development or subdivision is located; or
2. Is adjacent to a tract of land where a proposed or actual development or subdivision is located and the two properties are separated only by a river, stream or public highway.

Accessory Dwelling Unit: A dwelling unit located within or appurtenant to an owner-occupied single-family dwelling. An accessory dwelling unit means an efficiency or one-bedroom apartment that is clearly subordinate to a single-family dwelling, and has facilities and provisions for independent living, including sleeping, food preparation, and sanitation, provided there is compliance with all the following:

1. The property has sufficient wastewater capacity to satisfy state regulations.
2. The unit does not exceed the greater of 1,200 square feet or 30 percent of the total habitable floor area of the single-family dwelling.
3. Applicable setback, coverage, and parking requirements specified in the bylaws are met.

Accessory Use or Building: A use or building customarily incidental, subordinate to the principal use or building, and located on the same lot.

Accepted Agricultural Practices: This bylaw shall not regulate accepted agricultural practices, as those practices are defined by the Secretary of the Agency of Agriculture Food and Markets.

Agricultural Sales and Service Facility: A retail establishment for the display, sales, or service of agricultural equipment and supplies, including but not limited to tractors, balers, hay wagons, bulk tanks, fertilizer and feed. Includes showroom, parking lot, and enclosed bulk storage and warehouse.

Agricultural Use (Farming): Land or structure used for raising livestock, growing agricultural or forest products, storing agricultural equipment, or, as an accessory use, selling agricultural products or nursery stock raised on the property, pursuant to the definition of farming contained in 10 V.S.A. 6001(22).

Alteration: Structural change, rearrangement, or use or addition to a building.

Applicant: Any person, firm, corporation, partnership, association, unincorporated organization, trust, or any other commercial or legal entity, including a joint venture of affiliated ownership which owns or controls the tract(s) of land to be developed or subdivided, who shall lay out for the purpose of sale or development any subdivision or part thereof as defined herein, either for him/herself or for others or who other files a request before the Zoning Administrator or Development Review Board

Appurtenant: An accessory apartment or other structure is appurtenant to a primary dwelling or other type of principal use when it satisfies both of the following tests:

1. Proximity. The accessory apartment or structure is located within a short distance from the main structure (Generally less than 200 feet.).
2. Connectivity. The accessory apartment or structure shares all or a portion of the same infrastructure as the main structure and is clearly subordinate to the main structure.

Average Person: For the purposes of the review of aesthetics and impacts or effects of a project on aesthetics, an average person shall be one with no specific interest in a proposed project, one who is not an abutter to a project or affected by the project. The Planning Commission or members of the Development Review Board may be considered to represent the average person as appropriate in the review process.

Basement: Story partly or entirely underground. A basement shall be counted as a story if the vertical distance between the basement ceiling and the average grade level of the adjoining ground is more than six (6) feet.

Bed and Breakfast: Building wherein people are offered food and lodging on a temporary basis as a for-profit business.

Building: Structure having a roof supported by columns or walls and intended for the shelter or enclosure of persons, animals, or personal property. Includes any carport, porch, terrace, deck, or steps covered overhead.

Building Area: Total of areas taken on a horizontal plane at the main finished grade level of the principal building and all accessory buildings. Any solar collection device or related apparatus is not included. All dimensions shall be measured between exterior faces of walls.

Building Front Line: Line parallel to the street line transecting that point of the building, which is closest to the street line. Where a lot fronts on public waters but not a public road, "mean water line" shall replace "street line" in this definition.

Building Height: Vertical distance measured from the average elevation of the proposed finished grade of the building to the highest point of the roof for flat and mansard roofs, and to the average height between eaves and ridge for other types of roofs.

Building Rear Line: Line parallel to the street line transecting that point of the building, which is farthest from the street line. Where a lot fronts on public water but not a public road, "mean water line" shall replace "street line" in this definition.

Building Side Line: Line parallel to the nearest side lot line transecting that point of the building which is nearest the side lot line.

Camper: Any motorized or un-motorized vehicle mounted on wheels and used as sleeping, camping, or temporary living quarters. This includes a camper body mounted on a truck, and excludes mobile homes.

Campground: Any tract or parcel of land occupied by three (3) or more campers, tents, or tent sites.

Certificate of Compliance: A certificate issued to an occupant or owner certifying compliance with applicable zoning regulations and permits conditions.

Churches, Place(s) of Worship: A building wherein persons regularly assemble for religious worship and which is maintained and controlled by a religious body organized to sustain public worship, together with all accessory buildings and uses customarily associated with such primary purpose. Includes synagogue, temple, mosque, or other such place for worship and religious activities.

Clinic: A non-residential office building used by members of the healthcare professions for the diagnosis and outpatient treatment of human ailments.

Clear Cutting: Complete or substantial removal of all trees greater than three inches (3") in diameter at breast height in a given area.

Club: Building or use catering exclusively to club members and their guests for recreational, educational, or service purposes.

Community Facility: Any state or community owned institutions or facilities, public and private schools or other educational institutions certified by the State Department of Education; churches and other places of worship, convents or parish houses; and public and private hospitals.

Commercial Development: All construction other than for residential, agricultural, government

purposes or by a religious institution, which is subject to the review of the Panton Planning Commission and/or any Development Review Board created by the Town. “new commercial development means any construction of new commercial buildings which commence after the effective date of this regulation.

Conditional Use: Use which may be permitted only by approval of the Development Review Board after public notice and public hearing to determine whether the proposed use will conform to general and specific standards as set forth or referred to in this regulation and pursuant to Section 4414 of the Act.

Daycare Facility or Family Childcare Home: A family childcare home or facility means a home or facility where the owner or operator is licensed or registered by the state for childcare. A family childcare home serving not more than six children shall be considered to constitute a permitted single-family residential use of property. A family childcare home serving not more than six fulltime children and four part-time children, as defined in subdivision 33 V.S.A. §4902(3)(A), shall be considered a permitted use, but shall be subject to site plan approval based on requirements in these regulations, if site plan review standards are adopted. A family childcare facility serving more than 6 fulltime and four part-time children shall be a conditional use or prohibited, pursuant to the guidance provided in the relevant portion of Article X of these regulations governing the uses allowed in each district.

Distribution Line: A distribution line is an electrical line typically below 34.5kV in voltage designed to provide and distribute electrical service to neighborhoods, commercial and individual residential properties. Energy development projects require collector lines to collect and distribute the energy directly to a residence or facility, or to the electrical grid.

Drive-In Facility: An establishment designed or operated to serve a patron while seated in a motor vehicle parked in an off-street parking space.

Driveway: A private access road for vehicular travel serving up to three residences and related accessory units.

Dwelling Unit: Building or part thereof used as living quarters for one family. The terms "dwelling", "one-family dwelling", "two-family dwelling", or "multiple-family dwelling" shall not include a tourist home, bed and breakfast or motor lodge.

Dwelling, One-Family: Detached building used as living quarters by one family.

Dwelling, Two-Family: Building used as living quarters by two families living independently of each other.

Dwelling, Multiple-Family: Building used as living quarters by three or more families living independently of each other.

Dwelling, Farm Labor: A building that is associated with an active farm and is utilized to house farm workers. They may include the adaptive reuse of existing farm buildings or the construction of new buildings (including the use of mobile homes), including Farm Worker Dormitories (see separate definition). Farm worker dwellings require conditional use review, and must comply with special farm worker housing provisions outlined in Section 517.

Family: One or more persons living, sleeping, cooking, and eating on the same premises as a single housekeeping unit.

Farm: A parcel of land primarily used for growing food, fiber, Christmas trees, maple sap, or horticultural and orchard crops; or raising, feeding or managing livestock, poultry, equines, fish or bees; or operating greenhouses; or producing maple syrup for commercial purposes.

Farm Structure: A building, enclosure, or fence for housing livestock, raising horticulture or agronomic plants, or carrying out other practices associated with an acceptable agricultural practice.

Fence: Structure or vegetation used primarily for enclosure or screening.

Field of View: Defined from a given point means the area visible within a photograph taken from that point with either of two camera and lens combinations as follows:

- A Digital Camera with a Full-Frame Sensor and a 50mm focal length lens
- A Digital Camera with an APS-C Sensor and a 35mm focal length lens.

Finished Grade: Completed surfaces of ground, lawn, walks, paved areas and roads brought to grade as shown on plans relating thereto.

Floor Area: Sum of the gross horizontal area of the floors of a building, excluding basement floor areas. All dimensions shall be measured between interior faces of walls.

Farm Worker Dormitory and/or Bunkhouse: A special type of farm worker dwelling that is used as group living quarters. Dormitories don't typically include individual kitchen facilities or private bathroom facilities, as do dwelling units. Farm worker dormitories and/or bunkhouses require conditional use review, and must comply with the special farm worker housing provisions outlined in Section 517.

Front Yard Setback: Consists of the depth of the front yard (distance from building front line to street line) plus the distance from the street line to the center line of the existing roadway. Where a lot fronts on public waters but not a public road, the front yard setback shall consist only of the depth of the front yard (building front line to ordinary high water level of 96.8).

Garage Sale: The sale of personal property on the premises of a dwelling unit, for a period not exceeding three (3) consecutive days, and not more than nine (9) days in a calendar year. A sale or sales of longer duration shall be deemed a retail store use. A garage sale is an accessory use.

Gasoline or Motor Vehicle Service Station: Any lot or area of land, including the building or buildings thereon, which is used for the sale of any motor vehicle fuel or lubricant, or which has commercial facilities for lubricating, washing, painting, repairing, or servicing motor vehicles.

Group Home or Residential Care Home: A residential care or group home operated under state licensing or registration, serving not more than 8 persons, who have a handicap or disability as defined in 9 V.S.A. §4501, shall be considered by right to constitute a permitted single-family residential use of property, except that no such home shall be so permitted if it is located within 1,000 feet of another existing or permitted such home.

Home Occupation: Accessory use conducted within a minor portion of a dwelling or accessory structure typically by the residents thereof, which is clearly secondary to the residential uses, is

customary in residential areas, and does not have an undue adverse effect upon the character of the residential area in which the dwelling is located.

Home Occupation I: Any occupation that is entirely within a living area of a residence, carried on only by members of the residing household, and is clearly secondary to the use of the dwelling as a residence. Examples include professional offices for doctors, lawyers, accountants or realtors; small repair shop for small appliances, watches etc; home tutoring; fabric arts such as weaving, quilting or clothing alterations; or other uses deemed similar or appropriate by the Development Review Board that will fit the character of the neighborhood.

Home Occupation II: Any small industry or service type with operation with up to 1 non-resident employee that is carried on within a residence or accessory building. Examples include small manufacturing shops, automotive repair, antique shops, small professional office or other uses deemed similar or appropriate by the Development Review Board that will fit the character of the neighborhood.

Home Occupation III: Any small industry or service type operation with up to 5 non-resident employees that is carried on within a residence or accessory building. Examples include small manufacturing shops, automotive repair, antique shops, small professional office or other uses deemed similar or appropriate by the Development Review Board that will fit the character of the neighborhood.

Housing, Affordable: Housing that is owned or rented by its inhabitants, whose gross annual household income does not exceed 80 percent of the county median income, as defined by the United States Department of Housing and Urban Development, and the total annual cost of the housing, for owners (including principal, interest, taxes and insurance) and for renters (including rent, utilities, and condominium association fees) is not more than 30 percent of the household's gross annual income. 24 V.S.A. § 4303(1) (A).

Housing, Low Income: Housing that is affordable, according to the U.S. Department of Housing and Urban Development, for either home ownership or rental, and that is occupied, reserved, or marketed for occupancy for households with a gross household income that does not exceed 50 percent of the median gross household income for households of the same size within the housing region in which the housing is located.

Housing, Moderate Income: Housing that is affordable, according to the U.S. Department of Housing and Urban Development, for either home ownership or rental, and that is occupied, reserved, or marketed for occupancy by households with a gross household income that is greater than 50 percent but does not exceed 80 percent of the median gross household income for households of the same size within the housing region in which the housing is located.

Interested Person: A person owning or occupying real property in the immediate neighborhood of a parcel of land that is the subject of any decision or act taken under this chapter, who can demonstrate a physical or environmental impact on the person's interest under the criteria reviewed, and who alleges that the decision or act, if confirmed, will not be in accord with the policies, purposes, or terms of the plan or bylaw of that municipality. Please see 24 V.S.A., §4465 for a broader definition of an interested parties and a more complete definition.

Kennel: Any lot or premise on which three or more dogs, at least four months of age, are kept

for sale or commercial breeding purposes.

Land Development: Means the division of a parcel into two or more parcels; the construction, reconstruction, conversion, structural alteration, relocation, or enlargement of any building or other structure including above and in-ground pools, any prefabricated structures or of any mining, excavation, or landfill; and any change in the use of any building or other structure or land, or extension of use of land.

Loading Space: Off-street space, which is at least twelve feet wide, forty feet long, and fourteen feet high, not including access driveway, and having direct access to a street or alley, used for the temporary location of one licensed motor vehicle.

Lot: For the purposes of land development, land, with or without buildings, having not less than the minimum area, width and depth required for a lot in the district in which such land is situated, and having frontage on a public road or public waters, or other means of access as may be required elsewhere in these bylaws. The definition includes an existing small lot, per Section 501, which may not meet minimum area, width, or depth requirements.

Lot Area: Total area within the property lines excluding any part thereof lying within the boundaries of an existing or proposed street.

Lot, Corner: Lot, which has an interior angle of less than 135 degrees at the intersection of two streets.

Lot Coverage: That percentage of the lot area covered by the building area.

Lot Depth: Mean horizontal distance from the rear lot line. Where a lot fronts on public waters but not a public road, "mean water line" shall replace "street line" in this definition.

Lot Frontage: Distance measured across the width of the lot at the public road or, in the absence of a public road, the public waters or an approved right of way.

Lot Line: Property lines bounding a lot.

Lot Line, Rear: The lot line opposite and most distant from the street line. Where a lot fronts on public waters but not a public road, "mean waterline" shall replace "street line" in this definition.

Lot Width: Mean horizontal distance between side lot lines.

Marina: A place for docking, mooring, storing, selling, servicing, or repairing boats, including the sale of fuel and supplies.

Minor Portion of a Dwelling: A portion less than fifty (50) percent of the total square footage of the dwelling or structure.

Mitigation: The means by which a project's on and off-site impacts or effects may be reduced or eliminated; a reasonable and available step by which an applicant, developer or property owner may take as part of a permit approval process to satisfy concerns with regard to project and development impacts.

Mobile/Modular/Manufactured Home: A prefabricated dwelling unit which is designed for long-term and continuous residential occupancy, is designed to be moved on wheels as a whole and is ready for occupancy upon arrival at the site except for incidental unpacking, connections with utilities, and placement on supports or foundation or any structure for which the manufacturer voluntarily files a certification required by the U.S. Department of Housing and Urban Development and complies with the standards established under Title 42 of the U.S. Code. 10 V.S.A. § 6201(1) (governing mobile homes).

Mobile Home Park: Any parcel of land under single or common ownership or control which contains, or is designed, laid out or adapted to accommodate, more than two mobile homes. Nothing herein shall be construed to apply to premises used solely for storage or display of mobile homes. Mobile Home Park does not mean any parcel of land under the ownership of an agricultural employer who may provide up to four mobile homes used by full-time workers or employees of the agricultural employer as a benefit or condition of employment or any parcel of land used solely on a seasonal basis for vacation or recreational mobile homes. 10 V.S.A. §6201(2).

Motor Lodge: A building or group of buildings used for the purpose of providing overnight lodging facilities to the general public for compensation, with or without meals.

Motor Vehicle Sales Facility: A retail establishment for the display and sale of motor vehicles, including but not limited to cars, trucks, vans, campers, boats, motorcycles, or snowmobiles. Includes an enclosed showroom and a parking lot.

Non-Conforming Structure: Structure not conforming to the Zoning Regulations for the district in which it is located, where such structure conformed to all applicable laws, ordinances and regulations prior to enactment of these regulations, including a structure improperly authorized as a result of error of the Administrative Officer

Non-Conforming Use: Use of land or structure that does not comply with all Zoning Regulations for the district in which it is located, where such use conformed to all applicable laws, ordinances and regulations prior to enactment of these regulations, including a parcel improperly authorized as a result of error of the Administrative Officer

Parking Space: Off-street space used for the temporary location of one licensed motor vehicle, such space being at least eight (8) feet wide and eighteen (18) feet long, not including access driveway, and having direct access to a street.

Permitted Use: Use specifically allowed in the district, excluding illegal uses and non-conforming uses.

Personal Service: Barber, beauty salon, shoe repair, Laundromat, dry cleaner, photographic studio, and other businesses providing similar personal services, except for medical services.

Planned Unit Development (PUD): An area of land to be developed as a single entity for a number of dwelling units, and commercial and industrial uses, if any, the plan for which does not correspond in lot size, bulk, or type of dwelling, commercial, or industrial use, density lot coverage, and required open space to the zoning regulations established for the district in which it is proposed to be located. A PUD can encourage new communities, innovation in design, layout, and use that are more efficient of land. See Sections 4303(19) and 4417 of the Act for a

more detailed description of PUD's.

Plant: As set forth in 30 V.S.A. § 8002(14).

Plat: A document record describing a plot of land.

Project: a) A ground-mounted solar plant of over 15 kW, including any accessory structures, but excluding utility poles or b) a wind energy development of 100kW or more, or c) new commercial development within the Town of Panton. A project does not include a solar plant of 15 kW or smaller.

Professional Office: Professional office including architect, accountant, dentist, doctor, lawyer, engineer, psychologist, or other similar occupation.

Quarrying: Marble, granite or other stone extraction operations and any land development incidental thereto. Quarrying includes the enlargement of any existing quarrying excavations.

Quechee Analysis: An aesthetic review process adopted as part of Vermont Act 250 Criterion 8 and the Public Service Board Section 248 Review for a Certificate of Public Good. Also used by individual communities for local review of large scale or energy generation or transmission projects.

Recreation, Indoor: Bowling alley, theater, pool hall, arcade, skating rink, gymnasium, health club, or other similar places of indoor recreation.

Recreation, Outdoor: Golf course, hunting preserve, skating rink, park beach, cross county skiing facility, playground, ball field or other similar places of outdoor recreation.

Residential Use: One-family dwelling, two-family dwelling or multiple-family dwelling.

Right-of-Way: A legally defined right of access.

Restaurant: A public eating establishment in which the primary function is the preparation and serving of food.

Retail Store: Any enclosed business concerned primarily with the sale of product, products, goods, equipment or commodities; and shall exclude any drive-in facility, free-standing retail stand, gasoline or motor vehicle service station, motor vehicle sales facility, restaurant or salvage yard.

Salvage Yard: Land or building used for the collecting, storage, or sale of waste paper, rags, scrap metal or discarded material; or for the collecting, wrecking, dismantling, storage, salvaging and sale of machinery parts or vehicles not in running condition.

Sanitary Landfill: A land use permitted for the disposal, dumping and burial of mixed solid waste and construction and demolition debris, and in compliance with the applicable Vermont State Statutes.

Screening: Reasonable aesthetic mitigation measures to harmonize a project or permitted use with its surroundings and includes landscaping, vegetation, fencing and topographic features and

existing structures, all of which must be maintained until a solar project decommissioning is complete or the project or permitted use is dismantled and the site restored to its pre-installation condition.

Service Area: A designated space used for waste storage or pickup, utility areas, or for the delivery of goods and services, to any building or land uses.

Setback: Distance from the side or rear property lines behind which a structure can be built. Front yard setback is distance from center road line to a point behind which structures can be built.

Sign: Any device, structure, building or part thereof, for visual communication that is used for the purpose of bringing the subject thereof to the attention of the public.

Silvicultural Practices: This bylaw shall not regulate accepted silvicultural practices, unless otherwise indicated, as those practices are defined by the commissioner of forests, parks and recreation under subsection 1021(f) and 1259(f) of Title 10 and section 4810 of Title 6.

Solar Collector: A device or structure, combination or part thereof that transforms direct solar energy into thermal, chemical, or electrical energy.

Solar Energy System: A complete design or assembly consisting of a solar energy collector, an energy storage facility, where used, and components for the distribution of transformed energy. Passive solar energy systems are those that use natural or architectural components to collect and store solar energy without using external mechanical power, are included in this definition.

Stable: A facility where less than 4 horses are kept for remuneration, hire, sale, or for private use. A stable shall be considered an accessory use to a single family home. Stables housing 4 or more horses are considered agricultural operations and should be treated as exempt agricultural uses as per Section 322.

Street: A public way whether public or private serving more than three residences or commercial parcels officials of the town accepted.

Street Line: Right-of-way line of a street as dedicated by a deed or other proper instrument of record.

Structure: Anything constructed or erected, the use of which requires location on the ground, or attachment to something located on the ground.

Town: The Town of Panton, VT.

Transmission Line: A high voltage electrical line, typically 34.5 kV or higher, that is located within dedicated Rights of Way, and typically developed to move electrical energy from plant to substation, or from substation to substation.

Variance: A departure from the zoning bylaws, which is granted or denied by the Development Review Board. The condition specified in Section 4468 of the Act must exist in order for a variance to be granted.

Veterinary Clinic/Animal Hospital: A building or premises for the medical or surgical treatment of animals.

Visible Area: The portion of a project that is not blocked from view by screening.

Warehouse: A structure or part thereof for storing goods and merchandise.

Wind Energy Conversion System: A device that converts wind energy to mechanical or electrical energy, and may store it for future use. Such systems typically consist of a tower structure, with a wind energy turbine and rotors mounted atop said structure.

Yard: Land area on a lot not excluding principal buildings or structures.

Yard, Front: Land area between the street centerline or ordinary high water level of 96.8 and the building front line.

Yard, Rear: Land area between a lot back line and a building back line at ground level.

Article II: Establishment of Zoning Districts and Zoning Map

Section 210: Establishment of Zoning Districts

The Town of Panton is hereby divided into the following zoning districts as shown on the "Zoning Map".

Residential 2 (R-2)
Residential 5 (R-5)
Residential Agricultural (RA-10)
Commercial (C-1)
Flood Hazard Area (FH)

Section 220: Zoning Map

The locations and boundaries of Zoning Districts are established as shown on the Zoning Map drafted by Addison County Regional Planning Commission dated February, 2002 and recorded in the Town Clerk's Office. A non-official reproduction is included herein for convenience only. The Zoning Map is hereby made a part of these regulations, together with all future amendments. If uncertainty exists with respect to the boundary of any zoning district on the Zoning Map, the Planning Commission shall determine the location of such boundary, based on the official Zoning Map on file in the Town Clerk's Office.

Article III: Administration and Enforcement

Section 300: Application of Regulations

The application of these regulations is subject to 24 V.S.A. §§ 4411, 4412 and 4413 of the Act. Except as hereinafter provided, no land development shall occur unless it is in conformity with the regulations herein specified for the district in which it is located or it is exempt per the Act or Section 301 of these regulations.

Any use not permitted by these regulations shall be deemed prohibited.

Section 301: Exemptions

The following require no zoning permit but must conform to existing zoning regulations for the district within which they are located.

1. Pursuant to 24 V.S.A. § 4413(b), public utility power generating plants or transmission facilities regulated under 30 V.S.A. §248.
2. Pursuant to 24 V.S.A. § 4413(d) farm structures, excluding dwellings, accepted agricultural practices and accepted silvicultural practices are exempt from local permitting requirements. However, farmers intending to erect a farm structure must notify the municipality of the intent to build a farm structure, and abide by setbacks contained within the zoning ordinance, unless they provide an approval of lesser setbacks by the Secretary of the Agency of Agriculture, Food and Markets. The notification to the town must contain a sketch of the proposed structure and include the setback distances from adjoining property owners and the street right-of-way. Additionally, all farm structures within the Flood Hazard Overlay District must comply with the National Flood Insurance Program. Lastly, the municipality may report violations of Accepted Agricultural Practices or accepted Silvicultural practices to the appropriate state authorities for enforcement.
3. Pursuant to 24 V.S.A. § 4413(e), but subject to 24 V.S.A. 2295, these regulations shall not restrict hunting, fishing, trapping and other activities under section 2295.
4. Pursuant to 24 V.S.A. § 4413 the following uses may only be regulated with respect to location, size, height, building bulk, yards, courts, setbacks, density of buildings, off-road parking, loading facilities, traffic, noise, lighting, landscaping or screening requirements and only to the extent that the regulations do not have the effect of interfering with the intended functional use:
 - a. State or community owned and operated institutions and facilities.
 - b. Public and private schools and other educational institutions certified by the state Department of Education.
 - c. Churches and other places of worship, convents and parish houses.
 - d. Public and private hospitals.
 - e. Regional Solid Waste Management Facilities certified under 10 V.S.A. Chapter 159.
 - f. Hazardous Waste Management Facilities for which a notice of intent to construct has been received under Section 6606(a) of Title 10.Accordingly, these uses are only partially exempt. Please see Section 513 for more detail regarding how they will be regulated.
5. Fences, hedges, or walls, which do not interfere with corner visibility and which are no more than eight (8) feet in height. Fences do not need to meet Setback requirements.
6. Terraces, decks, step, or play structures, which are not covered overhead.
7. Doghouses, sheds, tree houses, or play structures having less than 64 square feet in floor area and less than eight (8) feet in height. Structures exempt under this section must be located at least 10 feet off property lines and outside all rights of way
8. Any sign erected by the Town or State for directional information or traffic control purposes. Signs exempt under this section (Except traffic control or other town signs) must be located at least 10 feet off property lines and outside all rights of way.

9. Above ground pools.

Section 310: Administrative Officer

The Administrative Officer shall be nominated by the Planning Commission and approved by the legislative body to administer the zoning regulation, as provided for in Section 4448 of the Act. Said officer shall administer the bylaws literally and shall not have the power to permit any land development not in conformance with these bylaws. In doing so the officer shall inspect developments, maintain records and perform all other necessary tasks to carry out the provisions of these regulations, including providing interested persons with forms and information necessary to obtain municipal permits and coordinating a unified effort on behalf of the municipality in administering its development review programs.

Section 315. Enforcement: Authority, Penalties, and Remedies

The purpose of this article is to set forth efficient and effective procedures for enforcement of the provisions of this ordinance. Violations of these regulations shall be enforced by the Administrative Officer pursuant to § 4451- 4454 of the Act. Reports of violations may be filed with the Administrative Officer who shall investigate all such filings. Any person found by the Administrative Officer to have violated any regulation shall be fined following the procedures and penalties established in § 4451 of the Act. All fines collected from the violation of these regulations shall be paid to the Town of Pantton.

If any land development is, or is proposed, maintained, or used in violation of these regulations, the Administrative Officer shall institute any appropriate action, injunction, and/or other proceeding to prevent, restrain, correct, and/or abate that development or use, or to prevent, in or about those premises, any act, conduct, business, and/or use constituting a violation. Such actions may include but are not limited to any combination of the following: (a) A new zoning permit; (b) Referral to the Development Review Board for review; (c) Immediate removal of the structure; (d) A denial of a zoning Certificate of Occupancy; and, (e) Fines, as allowed under law, until the violation is rectified.

A. "Waiver Fee"

"Waiver Fee" shall refer to the payment that is made for a person to "waive" or relinquish a specific right (e.g. the right to a hearing) with respect to an action of the court. For purposes of this ordinance, when a party is issued a municipal complaint ticket with a penalty fee and also a waiver fee, that party may consent to no hearing and instead pay only the designated "waiver" fee and send the payment with the ticket form in accordance with the procedures of the Judicial Bureau.

B. Zoning Enforcement

The Administrative Officer shall have ultimate responsibility for all matters relating to the enforcement of the zoning ordinance pursuant to § 310 of this article. While protocols may be adopted by which other town officials assist the Administrative Officer in zoning enforcement, the Administrative Officer shall retain the exclusive jurisdiction to make administrative interpretations (subject to appeal) concerning the terms of such ordinance.

C. Entrance Upon Premises

The Administrative Officer, as representative of the Development Review Board, may enter upon any land in the town to make examinations and surveys pursuant to 24 V.S.A. § 4325(9). When entrance upon property is refused or denied, the Administrative Officer may seek a warrant for the

purposes of conducting an examination of the premises. A warrant shall only be requested on the basis of Administrative Officer observations, when another town official has provided credible information to the Administrative Officer, and/or upon notification by verified written complaint that a zoning violation allegedly exists.

D. Observation or Complaints of Violations

Upon receipt of a written, signed complaint alleging a violation of this ordinance, the Administrative Officer shall investigate the complaint, take whatever action is warranted, and, if requested, inform the complainant in writing of actions that have been taken. The observation of a violation on the part of the Administrative Officer shall be considered an investigation, and the alleged violator may be issued a notice of zoning violation or a municipal civil complaint ticket.

E. Persons Liable

The owner, tenant, and/or occupant of any structure or land or part thereof who participates in, assists, directs, creates, and/or maintains any situation that is contrary to the requirements of this ordinance, and any architect, builder, contractor, agent, and/or other person who knowingly participates in, assists, directs, creates, or maintains any situation that is contrary to the requirements of this ordinance, may be held responsible for the violation and suffer the penalties and be subject to the remedies herein provided.

F. Civil Offenses, Penalties

A violation of this ordinance shall constitute a civil offense. Once a violation has been determined by the Administrative Officer, each day that a violation is continued shall constitute a separate offense. If an alleged violation is determined to exist, a formal notification shall be issued in the form of an enforcement action as described as follows:

1. Enforcement Action: An enforcement action may be brought for any violation of this ordinance. Pursuant to an enforcement action, any person who violates this ordinance shall be fined not more than the maximum amount authorized by statute for each offense. No action may be brought under this subsection unless the alleged offender has had at least seven days' warning notice by certified mail. An action may be brought without the seven-day notice and opportunity to cure if the alleged offender repeats the violation of the by-law or ordinance after the seven-day notice period and within the next succeeding 12 months. The seven-day warning notice shall state that a violation exists, that the alleged offender has an opportunity to limit or fix (cure) the violation within the seven-day warning period, and that the alleged offender will not be entitled to an additional warning notice for a violation occurring after the seven days. Each day that a violation is continued shall constitute a separate offense. All fines collected for the violation of by-laws shall be paid to the Town.

2. Municipal Civil Complaint Ticket: The Administrative Officer may issue a municipal civil complaint ticket for zoning violations with two copies of said ticket to be served either in person or by first class mail to the defendant (one copy shall be retained by the issuing officer and the original shall be filed with the Judicial Bureau). The issuing officer shall follow the procedure set forth by the Judicial Bureau for municipal complaint tickets.

3. The first offense ticketed for a violation shall be punishable by a fine of one hundred dollars (\$100.00), the waiver fee shall be one-half of the assessed fine; a second offense ticketed for the same violation shall be punishable by a fine of one hundred and fifty dollars (\$150.00), the waiver fee shall be one-half of the assessed fine; a third offense and subsequent offense ticketed for the

same violation shall be punishable by a fine of two hundred dollars (\$200.00), the waiver fee shall be one hundred and fifty dollars (\$150.00).

Upon the fourth offense, the Town may request that the case be transferred from the Judicial Bureau to the Environmental Court, or any other court of competent jurisdiction.

G. Withhold Permit

The Administrative Officer is authorized to deny all zoning permits or certificates of occupancy for any property with an uncorrected zoning violation (i.e. notice of zoning violation and/or municipal complaint ticket has been issued and is not under appeal). The Administrative Officer is also authorized to deny all zoning permits for any property with an expired zoning permit without a final Certificate of Occupancy. Instead of withholding or denying a zoning permit, the Administrative Officer may grant such permit subject to the condition that the uncorrected zoning violation is corrected, or the expired zoning permit is closed out with a final Certificate of Occupancy. Such action(s) shall take place before the issuance of a final Certificate of Occupancy on the new permit.

H. Processing Fee

If any enforcement action results in the need for a zoning permit for the subject property, the application fee(s) for processing such permit shall be twice the regular application fee charged if the application is made within 15 days of receipt of the violation notice, or triple the regular application fee if the application is made between more than 15 days after receipt of the violation notice. These fees shall be separate from any penalties that may be assessed hereunder § 315(F) of this article.

I. Appropriate Action

If any land development is, or is proposed, maintained, or used in violation of these regulations, the Administrative Officer shall take appropriate action, in an effort to prevent, restrain, correct, abate and/or otherwise remedy a violation(s) of a zoning regulation or permit. Such actions may include, but are not limited to any combination of the following: (a) A new zoning permit; (b) Referral to the Development Review Board for review; (c) Immediate removal of the structure; (d) A denial of a zoning Certificate of Occupancy; and/or, (e) Fines, as allowed under law, until the violation is rectified.

Section 320: Zoning Permit

Except as noted in Section 301 of these regulations, or as specifically exempted in the Act, no land development or site and building construction may commence without a zoning permit issued by the Administrative Officer as provided for in 24 V.S.A. §4449 of the Act.

Section 321: Fees

The Selectboard shall establish all fees to be charged with respect to the administration of these regulations.

Section 322: Application for a Zoning Permit

Any person desiring to undertake any activity requiring a zoning permit, not exempt pursuant to Section 301 of these regulations, shall complete an application for a zoning permit and submit it with all required information to the Administrative Officer. The Administrative Officer shall not

issue a permit unless a complete application is filed with them. The application shall include the following information:

1. Existing conditions of the lot including structures, roads, easements, boundaries, rights-of-way, etc.
2. A sketch or plan indicating the shape, size, height and location of the proposed project.
3. The relation of the proposal to all property lines and to street or road lines.
4. Any structure to be erected, altered, extended or moved, and of the existing lot conditions of any structures already on the lot and/or indicating the location of any proposed new boundary line on the lot; the existing and intended use of all such structures and the land; the names and addresses of adjoining property owners, and such other information as may be required by the Administrative Officer to ensure that the provisions of these regulations are being followed.

Section 323: Action by the Administrative Officer.

Within 30 days after submission of a complete application, the Administrative Officer shall act with regard to the application for a permit presented and either pass it to the Development Review Board for its review, or, if authorized, conduct a review of the project. If the Zoning Permit is approved, the Administrative Officer shall issue a permit with appropriate conditions, if any. If the application is denied, the Administrative Officer shall state such denial and the reasons therefore in writing and shall immediately mail notice of such denial to the applicant at the address indicated on the application. Failure to act on a complete permit application, which the Administrative Officer has the authority to review, for a period of greater than 30 days shall result in a permits deemed approval. All activities authorized by the issuance of a zoning permit

shall be completed within two years of its date of issue, or the Zoning Permit shall become null and void and reapplication to complete any activities shall be required.

Section 324: Effect of Issuance of a Permit (Statutory Changes)

No permit issued pursuant to this section shall take effect until the time for appeal in Section 4465 of this title has passed, or in the event that a notice of appeal is properly filed, no such permit shall take effect until adjudication of that appeal by the Development Review Board is complete and the time for taking an appeal to the environmental court has passed without an appeal being taken. If an appeal is taken to the environmental court, the permit shall not take effect until the environmental court rules in accordance with 10 V.S.A. § 8504 on whether to issue a stay, or until the expiration of 15 days whichever comes first.

Section 325: Posting of a Zoning Permit (Statutory Changes)

Each permit issued under this section shall contain a statement of the period of time within which an appeal may be taken. The Applicant shall post a notice of permit on a form prescribed by the municipality within view from the public right-of-way most nearly adjacent to the subject property until the time for appeal (15 days) has passed.

Section 326: Certificate of Occupancy

It shall be unlawful to use, occupy or permit the use or occupancy of any land and/or structure, or part thereof, created, erected, changed, converted, or wholly or partly altered or enlarged in its use or structure, unless a Certificate of Occupancy has been issued by the Administrative Officer stating that the proposed use of the land or structure conforms to the provisions of these regulations. In the case of a structure, the Administrative Officer must inspect the site at the time the footings are in place and again when the structure is completed and deemed by the owner to be ready for occupancy before issuing a Certificate of Occupancy.

Section 327: Septic Systems

All residential and commercial dwellings and structural units require septic or sewage disposal systems designed and installed in accordance with State of Vermont standards for wastewater treatment and discharge. Plans for wastewater treatment and septic systems approved by the State of Vermont Department of Environmental Conservation are required as part of any zoning permit application and approval.

Section 328: Penalties

Violations of these regulations shall be addressed as prescribed in Sections 4451 and 4452 of the Act. Penalties may include fines up to the amount listed in the Act at the time of the offense (Currently up to one-hundred (100) dollars per offense, per day, doubled in the event of a default) injunctive relief, and any other lawful remedy the municipality may seek under the Act.

The offender will receive seven days written notice of the violation before imposition of a penalty. Injunctive relief may also be sought, pursuant to the procedure for enforcement contained in Sections 4451 and 4452 of the Act.

Section 330: Appropriate Municipal Panel (Statutory Changes)

The Development Review Board (“DRB”) shall constitute the appropriate municipal panel in Panton and shall be responsible for conducting quasi-judicial reviews of specific types of applications as listed below. Rules of procedures, rules of ethics, public notice requirements,

requirements regarding decisions, appeals and all other matters before the DRB acting as the appropriate municipal panel shall be established as provided by the Act and as set forth in these regulations.

Section 331: Planning Commission (Statutory Changes)

The Town of Pantan Planning Commission consists of members appointed by the legislative body. The Planning Commission has the following functions:

1. Prepare and update the Pantan Town Plan every five years and amend it as necessary.
2. As needed, prepare amendments to these regulations and other regulations as permitted by 24 V.S.A. Chapter 117.
3. Resolve any uncertainties regarding district boundaries on the Official Zoning Map.
4. Nominate the Administrative Officer with approval of the Selectboard to administer these regulations, as provided for in 24 V.S.A. § 4448.
5. Undertake capacity studies
6. Perform such other functions as dictated by 24 V.S.A. § 4325 and as it deems necessary and appropriate to fulfill its duties and obligations.

Section 332: Development Review Board

The Town of Pantan Development Review Board will consist of members appointed by the Selectboard for specified terms. Members may also be members of the Planning Commission. Any member of the Development Review Board may be removed for just cause by the Selectboard upon written charges and after a public hearing.

The Development Review Board has the following functions:

1. Hear and grant or deny appeals of actions of the Administrative Officer.
2. Hear and grant or deny requests for Variances.
3. Hear and grant or deny Conditional Use Approval.
4. Hear and grant or deny approval for expansions of non-conforming uses and non-complying structures pursuant to the criteria for Conditional Use Approval.
5. Hear and grant or deny approval for activities in the floodplain.
6. Hear and grant or deny requests for Waivers.
7. Serve as the appropriate municipal panel for the purpose of hearing and granting or denying approval of subdivision applications pursuant to the Subdivision Regulations.
8. Serve as the appropriate municipal panel for the purpose of hearing and granting or denying approval to modify district requirements under the Planned Unit Development provisions of these regulations as it considers subdivision applications.
9. Review requests for rights of way, or other changes requested to plats of record.
10. Any other form of land use request for which it is the appropriate municipal panel as authorized by these regulations and 24 V.S.A. §4460.

If more than one review is required for a project, the reviews, to the extent feasible, shall be conducted concurrently.

SECTION 340: PUBLIC NOTICE AND REVIEW PROCEDURE (Statutory Changes)

The applicant shall submit its application for review by delivering two (2) copies of those materials required by the appropriate section of these regulations governing the type of action requested to the town office, at least 25 days prior to the regular meeting of the Development Review Board. Sections governing the application and procedures for each type of review are contained herein:

Conditional Use: See Section 350

Appeal: See Section 360

Variance: See Section 370

Waivers: See Section 380

Other: See Section 390

Subdivision: See Subdivision Regulations

- 1. Notice procedures:** All development review applications or appeals before the Development Review Board shall require notice for a warned public hearing as follows:
 - a. Public Notice of hearings for conditional use review, variances, appeals of decisions of the Administrative Officer, and final plat review for subdivisions shall be given not less than 15 days prior to the date of the public hearing by all the following:
 - i. Publication of the date, place, and purpose of the hearing in a newspaper of general circulation in the municipality affected. The Administrative Officer or clerk of the Development Review Board shall place the notice in the paper.
 - ii. Posting of the same information in three or more public places within the municipality in conformance with location requirements of 1 V.S.A. § 312(c) (2), including posting within view from the public right-of-way most nearly adjacent to the property for which an application is made. The Administrative Officer or clerk of the Development Review Board shall post notices two places within town. The Administrative Officer or clerk of the Development Review Board shall also be responsible for posting the property.
 - iii. Written notification to the applicant or appellant and to owners of all properties adjoining the property subject to development, without regard to any public right-of-way. The notification shall include a description of the proposed project and shall be accompanied by information that clearly informs the recipient where additional information may be obtained, and that participation in the local proceeding is a prerequisite to the right to take any subsequent appeal. The Administrative Officer or clerk of the Development Review Board shall be responsible for notifying all adjoining landowners and shall do so by a certificate of mailing or hand delivery. Prior to the first hearing, the Administrative Officer or clerk of the Development Review Board shall demonstrate compliance with this provision by producing a copy of the letter sent, a list of those it was sent to and the certificate of mailing demonstrating that the letters were sent (The Administrative Officer or clerk need only demonstrate that the letter was sent, not that it was received) or signed receipts if the letter was hand-delivered. If the Administrative Officer or clerk fails to reasonably demonstrate that they sent notice to the adjoiners and any other interested party, the Development Review Board may postpone the hearing.

- b. Public Notice of Hearings on **all other types of development review**, including site plan review shall be given not less than **7 days** prior to the date of the public hearing, and shall include, at a minimum all the following:
 - i. Posting of the date, place, and purpose of the hearing in three or more public places within the municipality in compliance with the notice requirements for special meetings contained in 1 V.S.A. § 312(c)(2); The Administrative Officer or clerk of the Development Review Board shall post notices two places within town. The Administrative Officer or clerk of the Development Review Board shall also be responsible for posting the property.
 - ii. Written notification to the applicant and to owners of all properties adjoining the property subject to development, without regard to any public right-of-way. The notification shall include a description of the proposed project and shall be accompanied by information that clearly informs the recipient where additional information may be obtained, and that participation in the local proceeding is a prerequisite to the right to take any subsequent appeal. The Administrative Officer or clerk of the Development Review Board shall be responsible for notifying all adjoining landowners and shall do so by a certificate of mailing or hand delivery. Prior to the first hearing, the Administrative Officer or clerk of the Development Review Board shall demonstrate compliance with this provision by producing a copy of the letter sent, a list of those it was sent to and the certificate of mailing demonstrating that the letters were sent (The Administrative Officer or clerk of the Development Review Board need only demonstrate that the letter was sent, not that it was received) or signed receipts if the letter was hand-delivered.
- 2. **Review Procedures.** Pursuant to the requirements of 24 V.S.A. § 4461, for development review and §4468 for appeals, the Development Review Board shall set a date and place for a public hearing of an application or an appeal under this chapter that shall be within 60 days of the filing of a complete application or the notice of appeal with the Development Review Board. The Development Review Board shall give public notice of the hearing pursuant to the procedure described in Subsection 1 of this section and shall mail to the applicant, or in the case of appeals, the appellant, a copy of that notice at least 15 days prior to the hearing date. Any person or body empowered by Section 4465 of the Act to participate as an interested party or to take an appeal with respect to that property at issue may appear and be heard in person or be represented by an agent or attorney at the hearing. The Development Review Board may adjourn the hearing from time to time; provided, however, that the date and place of the adjourned hearing shall be announced at the hearing. All hearings shall be open to the public and the rules of evidence applicable at these hearings shall be the same as the rules of evidence applicable in contested cases in hearings before administrative agencies as set forth in 3 V.S.A. §810, Vermont Statute.
- 3. **Decisions.** The Development Review Board shall issue a written decision, which shall include findings of fact, any conditions, and provisions for appeal within 45 days after completing the hearing and shall within that period send the applicant or appellant, by certified mail, a copy of the decision. Copies of the decision shall also be mailed to every interested person who appeared and was heard at the hearing. A copy of the decision shall be filed with the Administrative Officer and the Town Clerk who shall record the decision as a public record. If the Development Review Board fails to make a decision within 45 days, on the 46th day the Development Review Board shall be deemed to have rendered a decision in favor of the applicant or permittee in the case of an appeal.

SECTION 350: CONDITIONAL USES (Statutory Changes)

Section 351: General Structure

The Administrative Officer shall not issue a Zoning Permit for any use or structure that requires conditional use approval or for the expansion or enlargement or change in use of an existing conditional use until the Development Review Board grants such approval. Uses requiring conditional use approval are listed Article X in the sections governing each zoning district. The Development Review Board shall make findings on general and specific standards, hold hearings and attach conditions, if any, as provided for in 24 V.S.A. § 4414(3) of the Act and all applicable sections of these regulations. Per Section 4413 of the Act, in any district certain uses may be permitted only by approval of the Development Review Board, if the Development Review Board after public notice and public hearing determines that the proposed use will conform to general and specific standards contained in these regulations.

Section 352: Existing Conditional Uses

Uses listed as conditional uses which existed prior to the effective date of these Regulations shall conform to all requirements herein pertaining to conditional uses with respect to a change in use, expansion or contraction of land area, or alteration of structures.

Section 353: Application for Conditional Use Approval

The applicant shall submit to the Administrative Officer, by filing an application in the town offices, at least 25 days prior to the regular meeting of the Development Review Board, two (2) copies of a letter summarizing the proposed conditional use which addresses all elements of this article, and all other information necessary to illustrate compliance with these regulations and for the Development Review Board to make its decision including: property identification numbers of the property taken from the latest tax records; name and address of the owner of record and the owners of adjoining lands; name and address of person or firm preparing the map; scale of Map of at least 1"=200', north point and date.

In addition to the information noted above, the Development Review Board may require the following:

1. An accurate map of the property showing existing features, including contours, structures, large trees, streets, utility easements, rights-of-way, land use and deed restrictions. (At least one copy of each map presented to the DRB should be on paper smaller than 11X17 to allow the clerk of the DRB to copy the map for the DRB's use during the hearing process.)
2. A plan, showing proposed structure locations and land use areas; streets, driveways, traffic circulation, parking and loading spaces and pedestrian walks; landscaping plans, including site grading, landscape design, and screening.
3. A construction sequence and time schedule for completion of each phase for buildings, parking spaces, and landscaped areas of the entire development.
4. A description of energy utilization and conservation measures for each heated structure.
5. Other information as requested by the Development Review Board

Section 354: Public Notice and Review Procedure

The Development Review Board shall give public notice of hearing as specified in Section 340(1) (a) of these regulations. The Development Review Board shall review this application

pursuant to the review procedure established in Section 340(2) of these Regulations and pursuant to any rules of procedure it adopts.

Section 355: General Criteria for Review

When determining the appropriateness of a proposed conditional use, the Development Review Board shall determine that the development or use will not result in an undue adverse impact on any of the following:

1. Capacity of Community Facilities. The capacity of existing or planned community facilities. A conditional use shall not overburden or exhaust existing or planned municipal facilities or services.
2. Character of the Area. The character of the area affected as defined by the purpose or purposes of the zoning district within which the project is located, and specifically stated policies and standards of the municipal plan. A conditional use may not, by its nature, scale, or conduct, cause an undue adverse change to the character of the area, as the area would exist if fully developed in accordance with the Town Plan. To that end, the conditional use shall meet or, where it is deemed appropriate by the Development Review Board, exceed the dimensional requirements for the district, the sign standards indicated in Article VII, and any other performance standards specified in these regulations. The estimated traffic generated by a conditional use shall not exhaust or exceed the capacity of the road to accept increased traffic unless the applicant agrees to a condition requiring the applicant to upgrade the road.
3. Traffic Impacts. The estimated traffic generated by a conditional use shall not, in combination with other uses, exceed the road capacity. The Development Review Board may require a traffic study to determine whether the capacity of the road will be exceeded. Where the capacity of the road to accept increased traffic is limited, the conditional use shall not exhaust or exceed the remaining capacity of the road.
4. Compliance with Regulations. A conditional use must comply with bylaws and regulations in effect at the time of submission of the application, including the portion of the bylaws governing PUD applications which allow changes to other portions of the bylaws.
5. Renewable Energy Resources. A conditional use shall not excessively inhibit or restrict access to or the use of renewable natural resources (including, but not necessarily limited to, water and sunlight) for energy generation.

Section 356: Specific Criteria for Review

Specific Standards. In addition to any conditions stemming from its review of the general criteria listed in Section 355, the Development Review Board may make such additional requirements

as it deems necessary with respect to the specific standards in Articles IV-X of these regulations or as it deems reasonable and necessary to implement the purpose of the Act and these Bylaws.

Section 357: Decision

Upon the close of the hearing, the Development Review Board shall issue its decision, and any conditions included therein, pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations.

Section 358: Performance Bonds (Revised)

The Development Review Board may require that the applicant furnish the town with a performance bond up to the value of the cost of the work/improvement to benefit the municipality to be guaranteed by such bond in order to assure the proper development of the improvements benefiting the municipality according to the restrictions and conditions specified by the Development Review Board and as set forth in these regulations. The Development Review Board may determine the amount of the bond or certified check based upon the recommendations of a professional architect/engineer hired by the town at the expense of the applicant pursuant to 24 V.S.A. 4440(d) of the Act.

SECTION 360: APPEALS TO THE DEVELOPMENT REVIEW BOARD (Statutory Changes)

Appeals of any decision of the Administrative Officer shall be made to the Development Review Board. The Development Review Board shall conduct hearings on appeals pursuant to the authority derived from and the procedures contained in 24 V.S.A. §§ 4465, 4466, 4468, 4469 and 4470.

Section 361: Deadline for Appeal

An appeal taken with respect to an act or decision of the Administrative Officer must be filed within 15 days of such act or decision.

Section 362: Interested Persons

Only an “interested person” as defined in Section 130 of these regulations and by 24 V.S.A. § 4465(b) may appeal the decision or action of the Administrative Officer under these regulations.

Section 363: Notice of Appeal

The appellant shall file a notice of appeal in the town offices with the secretary or chair of the Development Review Board or with the town clerk if no such secretary or chair has been elected. The following information shall be included as part of the submittal:

1. Name and address of the appellant;
2. Names and addresses of the applicant, co-applicant or any person party to the original application;
3. A brief description of the property from which the appeal is taken;
4. A reference to the regulatory provisions applicable to that appeal;
5. The relief requested;
6. The grounds as to why the relief requested is proper under the circumstances;

Section 364: Public Notice and Review Procedure

Public notice of hearing shall be given as required by Section 340(1)(a) of these regulations. The Development Review Board shall review all appeals pursuant to the procedure established in Section 340(2) of these regulations.

Section 365: Decision

Upon the close of the hearing, the Development Review Board shall issue its decision pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations.

SECTION 370: VARIANCE (Statutory Changes)

Requests for variances shall be made to the Development Review Board pursuant to the procedure outlined below.

Section 371: Application

The applicant shall submit to the Administrative Officer, by filing an application in the town offices at least 25 days prior to the meeting of the Development Review Board, two (2) copies of a letter summarizing the proposed variance which addresses all elements of this article, and all other information necessary to illustrate compliance with these regulations and for the Development Review Board to make its decision, including property identification numbers of the property taken from the latest tax records; name and address of the owner of record and those of adjoining lands; name and address of person or firm preparing the map; scale of Map, north point and date. In addition to the information noted above, the Development Review Board may require the following:

1. An accurate map of the property showing existing features, including contours, structures, large trees, streets, utility easements, rights of way, land use and deed restrictions. (At least one copy of each map presented to the DRB should be on paper smaller than 11X17 to allow the clerk of the DRB to copy the map for the DRB's use during the hearing process.)
2. A scaled plan, showing proposed structure locations and land use areas; streets, driveways, traffic circulation, parking and loading spaces and pedestrian walks; landscaping plans, including site grading, landscape design and screening.
3. Construction sequence and time schedule for completion of each phase for buildings, parking spaces and landscaped areas of the entire development.
4. A description of energy utilization and conservation measures for each heated structure.
5. Other information pertinent to the issue before the Development Review Board.

Section 372: Public Notice and Review Procedure

Public notice of hearing shall be given as required by Section 340(1)(a) of these regulations. The Development Review Board shall review this application pursuant to the review procedure established in Section 340(2) of these Regulations and pursuant to any rules of procedure it adopts.

Section 373: Review Criteria

The Development Review Board shall review all variance requests to determine if they can meet **all** of the following standards:

1. There are unique physical circumstances or conditions, including irregularity, narrowness, topography or other physical conditions and that the hardship is due to these condition and not the circumstances or provisions of the bylaw in the district in which the property is located.
2. Because of these conditions or circumstances, there is no possibility that the property can be developed in strict conformity with the bylaws and that therefore a variance is necessary to enable the reasonable use of the property.
3. Unnecessary hardship has not been created by the appellant.
4. The variance, if authorized will not alter the essential character of the neighborhood or district in which the property is located, substantially or permanently impair the

appropriate use or development of adjacent property, reduce access to renewable resources or be detrimental to the public welfare,

1. The variance will represent the minimum variance that will afford relief and will represent the least deviation possible from the plan.

Please see 24 V.S.A. § 4469 for more information or for matters dealing with variances relating to renewable energy resource structures.

Section 374: Decision

The Development Review Board shall make its decision on the request for variance by applying the facts presented in the application and at hearing to the criteria, listed above, and incorporating all into its decision. Upon the close of the hearing, the Development Review Board shall issue its decision pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations.

Section 375: Conditions

In approving a project the Development Review Board shall act to ensure, and may impose conditions requiring that the variance, if authorized, will represent the minimum variance that will afford relief and will represent the least deviation possible from the zoning regulation and from the plan. The nature of any variance and any conditions attached to it shall be entered on the face of the zoning permit, incorporated therein and shall be enforceable in the same manner as all other applicable requirements of these regulations.

SECTION 380: WAIVERS (Optional Statutory Change)

As an alternative to the variance procedures noted above, applicants may apply for site waivers of dimensional requirements pursuant to the criteria below.

Section 381: Application

The applicant shall submit to the information required to the Administrative Officer, by filing two (2) copies of a letter summarizing the proposed waiver which addresses all elements of this article, and all other information necessary to illustrate compliance with these regulations, at the Town Clerk's office, at least 25 days prior to the meeting of the Development Review Board. Information will include that which is necessary for the Development Review Board to make its decision, including property identification numbers of the property taken from the latest tax records; name and address of the owner of record and those of adjoining lands; name and address of person or firm preparing the map; scale of Map, north point and date.

In addition to the information noted above, the Development Review Board may require the following:

1. An accurate map of the property showing existing features, including contours, structures, large trees, streets, utility easements, rights of way, land use and deed restrictions. (At least one copy of each map presented to the DRB should be on paper smaller than 11X17 to allow the clerk of the DRB to copy the map for the DRB's use during the hearing process.)
2. A scaled plan, showing proposed structure locations and land use areas; streets, driveways, traffic circulation, parking and loading spaces and pedestrian walks; landscaping plans, including site grading, landscape design and screening.

3. Construction sequence and time schedule for completion of each phase for buildings, parking spaces and landscaped areas of the entire development.
4. A description of energy utilization and conservation measures for each heated structure.
5. Other information pertinent to the issue before the Development Review Board.

Section 382: Public Notice and Review Procedure

Public notice of hearing shall be given as required by Section 340(1)(b) of these regulations. The Development Review Board shall review this application pursuant to the review procedure established in Section 340(2) of these Regulations and pursuant to any rules of procedure it adopts.

Section 383: Review Criteria

The Development Review Board may grant waivers to reduce dimensional requirements, if the applicant can satisfy the following standards:

1. The waiver requested is for a use permitted within the district in question as by right use (as opposed to a conditional use).
2. The waiver requested is in conformance with the town plan and the goals set forth in Section 4302 of the Act.
3. The waiver requested is designed to conform to the character of the land use area in which it lies as defined in the Plan and further designed to reasonably limit impact or the potential for impact upon ones neighbors.
4. The design used incorporates design techniques (restricted height, lack of windows) screening (fencing or plantings) or other remedies to reasonably limit impact or the potential for impact upon ones neighbors.
5. The waiver requested accommodates structures providing for disability accessibility, fire safety and other requirements of land or energy conservation or renewable energy structures.

Section 384: Decision

The Development Review Board shall make its decision on the request for waiver by applying the facts presented in the application and at hearing to the criteria, listed above, and incorporating all into its decision. Upon the close of the hearing, the Development Review Board shall issue its decision pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations.

Section 385: Conditions

In approving a project the Development Review Board shall act to ensure, and may impose conditions requiring that the waiver, if authorized, will represent the minimum waiver that will afford relief and will represent the least deviation possible from the zoning regulation and from the plan. The nature of any waiver and any conditions attached to it shall be entered on the face of the zoning permit, incorporated therein and shall be enforceable in the same manner as all other applicable requirements of these regulations.

SECTION 390: OTHER APPLICATIONS (Statutory Changes)

Section 391: General Conditions

Any other applications or uses that require approval of a Development Review Board, but are not

specifically listed shall be reviewed under the procedure immediately below.

Section 392: Applications for Other Approvals

The owner shall submit two (2) sets of plan maps and supporting data to the Development Review Board by delivering the application to the Administrative Officer or filing the application at the Town Clerk's office. The application shall include the following information, presented in drawn form and accompanied by written text:

1. Property identification numbers of the property taken from the latest tax records; name and address of the owner of record and the owners of adjoining lands; name and address of person or firm preparing the map; Scale of Map, north point, and date.
2. An accurate map of the property showing existing features, including contours, structures, large trees, streets, utility easements, rights-of-way, land use, and deed restrictions. (At least one copy of each map presented to the DRB should be on paper smaller than 11X17 to allow the clerk of the DRB to copy the map for the DRB's use during the hearing process.)
3. Plan, showing proposed structure locations and land use areas, streets, driveways, traffic circulation, parking and loading spaces, and pedestrian walks; landscaping plans, including site grading, landscape design, and screening.
4. Construction sequences and time schedules for completion of each phase for buildings, parking spaces, and landscaped areas of the entire development.
5. A description of energy utilization and conservation measures for each heated structure.
6. Confirmation that any construction or development activities within the Shoreland Protection Zone, delineated as within an area 250 feet from mean water level (95.5 feet) and along the shore, as set forth by the State of Vermont Shoreland Protection Act (Chapter 49A/Title 10, Section 1441. et seq.) have met the requirements of the Shoreland Protection Act, and permits for such construction or development, if required, have been obtained.

Section 393: Public Notice and Review

Public notice of hearing shall be given as specified in Section 340(1)(b) of these regulations. The Planning Commission or Development Review Board shall review this application pursuant to the review procedure established in Section 340(2) of these Regulations and pursuant to any rules of procedure it adopts.

Section 394: Review Criteria

The Planning Commission or Development Review Board shall review the plan map and supporting data, taking into consideration the following objectives, before approval with or without stated conditions, or disapproval, is given:

1. Safety of vehicular circulation between the site and the street network.
2. Adequacy of circulations, parking, and loading facilities, with particular attention to safety.
3. Adequacy of landscaping, screening and setbacks in regard to achieving maximum compatibility and protection to adjacent property.
4. Freedom from flooding and ponding.

5. Adequacy of landscaping and screening with regard to the potential shading of the most southerly facing wall and/or roof of adjacent buildings.

Section 395: Decisions

Upon the close of the hearing, the Planning Commission or Development Review Board shall issue its decision pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations. In approving a project with conditions, the Planning Commission or Development Review Board may require specific modifications to the design, scale, layout and/or design or configuration of the project.

SECTION 399: APPEALS TO THE ENVIRONMENTAL COURT (Statutory Changes)

An “interested person” who has participated in a proceeding before the Development Review Board (the Development Review Board or Planning Commission, depending upon the type of application) may appeal a decision rendered in that proceeding to the Environmental Court. Participation in a local regulatory proceeding shall consist of offering, through oral or written testimony, evidence or a statement of concern related to the subject of the proceeding. An appeal from a decision of the Development Review Board shall be taken in such a manner as the Supreme Court may by rule provide for appeals from state agencies governed by 3 V.S.A. Sections 801 - 816.

Notice of the appeal shall be filed by certified mailing, with fees, to the environmental court and by mailing a copy to the municipal clerk or the administrative officer, if so designated, who shall supply a list of interested persons to the appellant within five working days. Upon receipt of the list of interested persons, the appellant shall, by certified mail, provide a copy of the notice of appeal to every interested person, and, if any one or more of those persons are not then parties to the appeal, upon motion they shall be granted leave by the court to intervene.

Article IV: Amendments, Interpretation, Effective Date

Section 410: Amendments

These regulations may be amended according to the requirements and procedures established in Section 4441 and 4442 of the Act.

Section 420: Interpretation

In their interpretation and application, the provisions of these regulations shall be held to be minimum requirements adopted for the promotion of the public health, safety, comfort, convenience and general welfare.

Except where these regulations specifically provide to the contrary, it is not intended by these regulations to repeal, annul, or in any way to impair any regulations or permits previously adopted or issued, provided. However, where these regulations impose a greater restriction upon the use of a structure or land than are required by any other statutes, ordinances, rules, regulation, permit, easement or agreement, the provisions of these regulations shall control.

Section 430: Effective Date

These regulations or amendments thereto shall take effect in accordance with the voting and other procedures contained in Section 4442 of the Act.

Section 440: Severability

If any provision of these regulations or the application thereof to any person or circumstances is held invalid, the invalidity does not affect other provisions or applications of these regulations which can be given effect without the invalid provision or application, and for this purpose the provisions of these regulations are severable.

Article V: Required and General Regulations

This use and interpretation of these regulations shall be subject to such additions, modifications, or exceptions as herein provided by the following required and general regulations.

Section 501: Promote and Protect Affordable Housing

These regulations shall be interpreted to promote and protect affordable housing as follows:

1. No provision of this regulation shall have the effect of excluding from the municipality housing to meet the needs of any population as identified in the housing element of the municipal plan as required under 24 V.S.A. § 4382(a)(10) of the Act.
2. Except as provided in 24 V.S.A. § 4414(1)(E) and (F) of the Act no provision of these regulations shall have the effect of excluding mobile homes, modular housing, or other forms of prefabricated housing from the municipality, except upon the same terms and conditions as conventional housing is excluded (See Article 1, Section 130, Definitions).
3. No provision of this regulation shall be construed to prevent the establishment of mobile home parks pursuant to Chapter 153 of Title 10. These regulations allow new mobile home parks on the same basis as other subdivisions and allow the replacement of existing mobile homes on existing lots.
4. These regulations provide for multifamily units in certain districts (See Article X Section 1004).
5. These regulations shall promote accessory apartments in all districts allowing single family homes, subject to specific requirements (See Article 1 definitions, Section 130, Article V, Section 503 and Article X).
6. Group or residential care homes as defined in Article 1, Section 130 of these regulations shall be allowed in all districts allowing single family homes, subject to certain restrictions (See Article V, Section 504 and Article X).

Section 502: Mobile Home Parks

Mobile homes are permitted in approved mobile home parks subject to the requirements of this section and state law. Existing mobile home parks shall be considered pre-existing non-conforming uses, unless they specifically comply with all provisions of these regulations. Nothing in these bylaws shall prohibit the replacement or improvement of homes on lots in existing parks. New mobile home parks shall be allowed under the PUD provisions on the same basis as any other subdivision regulation.

Section 503: Accessory Apartments

An accessory dwelling unit that is located within or appurtenant to an owner occupied single-family dwelling shall be a permitted use. An accessory dwelling unit shall be defined as efficiency or one-bedroom apartment, located within or appurtenant to an owner-occupied single-family dwelling, that is clearly subordinate to a single-family dwelling, and has facilities and provisions for independent living, including sleeping, food preparation, and sanitation, provided there is compliance with all the following:

1. The owner occupies either the primary dwelling or accessory dwelling.
2. The property has sufficient wastewater capacity.
3. The unit does not exceed the greater of 1,200 sq. ft. or 30 percent of the total habitable floor area of the single-family dwelling.
4. Applicable setback, coverage, and parking requirements specified in the bylaws are met.
5. Accessory Dwellings shall be appurtenant to the primary dwelling and shall use the same access.

Section 504: Group Home or Residential Care Facility

A residential care or group home operated under state licensing or registration, serving not more than 8 persons, who have a handicap or disability as defined in 9 V.S.A. §4501, shall be considered by right to constitute a permitted single-family residential use of property, except that no such home shall be so permitted if it is located within 1,000 feet of another existing or permitted such home.

Section 505: Existing Small Lots

Any lot in individual and separate and non-affiliated ownership from surrounding properties in existence on the effective date of these regulations may be developed for the purposes permitted in the district in which it is located, even though not conforming to minimum lot size requirements, if such lot is not less than one-eighth acre in area with a minimum width or depth dimension of forty feet.

Section 506: Required Frontage on, or Access to, Public Roads or Public Waters

No land development may be permitted on lots which do not have either frontage on a public road or public waters, or with the approval of the Planning Commission, access to such a road or waters by a permanent easement or right-of-way at least twenty (20) feet in width. If the proposed ROW is serving or in the opinion of the Planning Commission has the potential to service more than two houses, the Planning Commission may require an easement up to 50 or 60 feet depending upon whether the utilities require their own separate 10 foot easement.

In approving a permanent easement or right-of-way, the Planning Commission may attach conditions and safeguards, as it deems necessary to protect public health, safety and welfare.

Section 507: Home Occupations

No regulation herein is intended to infringe upon the right of any resident to use a minor portion of a dwelling or accessory structure for an occupation which is customary in residential areas and which does not have an undue adverse affect the character of the residential neighborhood, as determined by the Administrative Officer pursuant to the guidance provided by the Land Use Districts contained in the Panton Town Plan.

A home occupation may be considered an accessory use to a residential use. A home occupation is allowed in any district in which residential uses are also allowed. A zoning permit application shall be submitted to the Administrative Officer so that a determination can be made as to whether the proposed use is, in fact, a home occupation as defined by these bylaws. Any deviations to the following regulations may be considered by the Development Review Board upon application for a conditional use permit.

1. Home Occupation I (Exempt) Requirements:
 - (a) The home occupation shall be carried on by residents living on the premises only.
 - (b) No public visits to the home by customers, vendors or other business related persons shall be permitted.
 - (c) No exterior displays or signs shall be permitted.
 - (d) No traffic shall be generated in greater volume than would be normally expected in the neighborhood.
 - (e) Excessive noise, smoke, vibrations, dust, glare, odor, electrical interference or heat that is detectable at the boundaries of the premises shall be prohibited.
 - (f) No exterior storage of material shall be permitted.
 - (g) The home occupation shall not significantly change the character of the residential area.
 - (h) If these requirements are all met, the Zoning Administrator may issue a permit, unless the use is deemed to be a conditional use as specified in Section 350, which may be appealed within fifteen days.
2. Home Occupation II (Non-Exempt) Requirements:
 - (a) The home occupation shall be carried on by residents living on the premises and no more than 1 non-resident employee.
 - (b) No exterior displays or signs shall be permitted other than one unlit sign not exceeding four square feet in total area.
 - (c) No traffic shall be generated in greater volume than would be normally expected in the neighborhood.
 - (d) Excessive noise, smoke, vibrations, dust, glare, odor, electrical interference or heat that is detectable at the boundaries of the premises shall be prohibited.
 - (e) Parking shall be provided off street and should be located in the side or rear yard.
 - (f) No exterior storage of material shall be permitted.
 - (g) The home occupation shall not significantly change the character of the residential area.
 - (h) If these requirements are all met, the Zoning Administrator shall issue a permit, unless the use is deemed to be a conditional use as specified in Section 350, which may be appealed within fifteen days.
3. Home Occupation III (Non-Exempt) Requirements:
 - (a) The home occupation may have five additional employees other than residents of the home.
 - (b) The home occupation may be carried on in the dwelling or in an accessory building.
 - (c) The home occupation shall have enough parking spaces as deemed necessary by the Development Review Board. Parking should be in the rear or side lot. There shall be at least two parking spaces for family members.
 - (d) The Development Review Board will set noise levels, outside lighting, signage, or any other conditions that will insure that the character of the neighborhood will not change.
 - (e) The home occupation, if conducted in an accessory building, should be at least 200 feet from the nearest neighboring residence.
 - (f) There should be no substantial increase of traffic.
 - (g) All materials shall be inside or screened from the road and neighbors.
 - (h) It is the responsibility of the applicant to meet any state regulations.
 - (i) The home occupation shall not significantly change the character of the residential area.
 - (j) All home occupation III shall require Conditional Use approval from the Development Review Board.

Section 508: Daycare Facility or Family Childcare Home

Daycare facilities and child family care homes are defined in Section 130 hereof. Depending upon their size, and the potential for impact based on their size, they are either allowed in all

districts on the same basis as single family homes or regulated by site plan review or conditional use review (See Article X).

Section 509: Interior Lots

Any lot which does not have frontage on either a public road or public waters shall have the same setback distance requirements as established for lots in the district, unless part of a PUD.

Section 510: Lots in Two Zoning Districts

Where a district boundary line divides a lot of record, the regulations for the district in which the majority of the lot is located shall apply.

Section 511: Residential Buildings on Lots

There shall be no more than one residential building and one accessory dwelling unit on a lot except for Planned Unit Developments, as authorized by Section 4407(3) of the Act and Section 503 of the Ordinance.

Section 512: Non-Conforming Uses and Non-Conforming Structures

The following provisions shall apply to all structures and uses existing on the effective date of these regulations which do not conform to the requirements set forth in these regulations and to all structures and uses that in the future do not conform by reason of any subsequent amendment to these regulations.

Any non-conforming use of structures or land except those specified below may be continued indefinitely, but:

- a. Shall not be moved, enlarged, altered, extended, reconstructed or restored (except as provided below), nor shall any external evidence of such use be increased by any means whatsoever, without approval by the Development Review Board, and then only after a public hearing carried out pursuant to the provisions governing a conditional use review in Sections 350-358 in a manner, which, in the opinion of the Development Review Board does not enlarge the nature of the non-conformance.
- b. Shall not be changed to another non-conforming use without approval by the Development Review Board, and then only after a public hearing carried out pursuant to the provisions governing a conditional use review in Sections 350-358 and only to a use, which, in the opinion of the Board is of the same or of a more restricted nature.
- c. Shall not be re-established if such use has discontinued for a period of one year or has been changed to, or replaced by, a conforming use. Intent to resume a non-conforming use shall not confer the right to do so.
- d. Shall not be restored for other than a conforming use after damage from any cause unless the non-conforming use is reinstated by the commencement of construction within one year of such damage and the completion of construction and restoration of such building within two years; otherwise, the non-conforming use of such building shall be deemed to have been discontinued, unless such non-conforming use is carried on uninterrupted in the damaged part of the building.

Nothing in this section shall be deemed to prevent normal maintenance and repair of a non-conforming building provided that such action does not increase the degree of non-conformance.

Section 513: Special Public Use Exceptions

Pursuant to 24 V.S.A. § 4413 the following uses may only be regulated with respect to location, size, height, building bulk, yards, courts, setbacks, density of buildings, off-road parking, loading facilities, traffic, noise, lighting, landscaping or screening requirements and only to the extent that the regulations do not have the effect of interfering with the intended functional use:

1. State or community owned and operated institutions and facilities.
2. Public and private schools and other educational institutions certified by the state Department of Education.
3. Churches, and other places of worship, convents and parish houses.
4. Public and private hospitals.
5. Regional Solid Waste Management Facilities certified under 10 V.S.A. Chapter 159.
6. Hazardous Waste Management Facilities for which a notice of intent to construct has been received under Section 6606(a) of Title 10.

It is the intent of these regulations to regulate these facilities to the maximum extent allowable under law. Since Panton does not have Site Plan review at the current time, the uses noted above shall be subject to those criteria under the conditional use procedure and standards listed in Article III of these regulations that pertain to the criteria that Panton may regulate. As a part of the review, Panton may also enforce any other portions of these regulations that pertain to aspects of the project that Panton may regulate, including Parking (Article VI), Signage (Article VII) and others.

Section 514: Construction Approved Prior to Adoption of or Amendment to Regulations

No additional or revised permit shall be required for any building upon which construction had begun prior to the adoption of these regulations, provided such construction is completed within one year from the date of such adoption.

The Town shall not require any change in the plans for, or construction of, a structure or use for which a zoning permit has been issued and which has subsequently been made non-complying or non-conforming by an amendment of these bylaws if the activities authorized by the zoning permit are completed while the permit is valid.

Section 515: Abandonment of Structures

Within one year, after a permanent or temporary structure has been destroyed or demolished all structural materials shall be removed from the site. Any remaining excavation on the site shall be secured in a safe and reasonable manner.

Section 516: Temporary Use and Structures

Temporary permits may be issued by the Administrative Officer for the period not exceeding one year after approval by the Development Review Board for non-conforming uses and structures incidental to construction projects, provided such permits are conditioned upon agreement by the owner to remove the structure or use upon expiration of the permit. Such permits may be renewed upon application for an additional period not exceeding one year.

Section 517: Farm Labor Housing

Farm Labor Housing is considered a Non-conforming Use and as such may be granted a

conditional use permit by the Panton DRB in any zoning district under the following requirements:

1. The applicant must submit to the DRB for approval a dimensional plot plan showing the proposed site of the new dwelling. The proposed dwelling must be located so that a conforming lot could be created meeting all underlying district provisions of Panton Zoning Regulations. The lot must be defined in the application but no actual subdivision is required until such time as the owner seeks to sell the subject property.
2. The dwelling under this permit can only be subdivided and/or converted for sale as a single family dwelling separate from the agricultural use if it meets all regulations of the zoning district regarding density, setbacks, lot size, and frontage. It may be considered under a PUD provision if involving more than one dwelling unit.
3. Final approval of a non-conditional use is contingent upon the submission of a state approved septic design to the Town by the applicant.
4. The dwelling cannot be a temporary structure such as an R.V. or camper.
5. The dwelling cannot be rented to residents other than farm labor employees.
6. Conditional use approval by the DRB of the non-conforming use is limited to the present owner(s) and any change of that use is subject to a resubmission on an application for a non-conforming use permit.
7. The applicant shall demonstrate that there is an adequate water supply for all anticipated residents.
8. The permit shall clearly state that this housing is accessory to the principal agricultural use of the property and shall be owned and maintained by the farm owner.
9. The proposed dwelling is to be used solely to house farm employees and their families.
10. The dwelling shall comply with all applicable State and Federal health and safety regulations; e.g. fire codes, potable water supply, wastewater discharge, etc.
11. A bunkhouse and/or dormitory may be allowed as farm worker housing in zoning district RA-10 with conditional use approval by the DRB in accordance with Sections 350-358 and all of the following provisions.
 - a) It must be an accessory structure on property owned or rented by the farm operator to house employees working on the farm.
 - b) It must meet all applicable health and safety standards and obtain all necessary state permits as a condition of approval.

Section 520: Public Utility Structures

Public utility structures as listed in Section 518, where permitted, shall comply with the following:

1. The facility shall be surrounded by a fence which is set back from the property lines in conformance with the district regulations for front, side and rear yards.
2. A landscaped area, subject to review and approval by the Planning Commission, designed to screen the property from adjacent roads and properties, shall be maintained in front, rear and side yards. Such landscaping shall provide sufficient screening as necessary and appropriate, and as required by the DRB.
3. Public Utility Structures shall be screened in accordance with all applicable provisions of Sections 527, Energy Systems.
4. Screening and landscaping shall be maintained in healthy and effective condition for the life of the project and replacement plants are required when there is loss of any plants that are integral to the landscaping and screening and have been conditioned as part of the permit approval.
5. Landscaping provisions shall reference or adopt those requirements or guidelines as set

forth in Section 550 Landscaping, of this Ordinance.

Section 521: Storage of Flammable Liquids

The storage of any highly flammable liquid in tanks above ground with unit capacity greater than five hundred and fifty gallons shall be prohibited, unless such tanks up to and including ten thousand gallon capacity are placed not less than eighty feet from all property lines, and unless all such tanks of more than ten thousand gallon capacity are placed not less than two hundred feet from all property lines.

All tanks having a capacity greater than five hundred and fifty gallons shall be properly retained with containment dikes having a capacity not less than one and one-half times the capacity of the tanks surrounded.

Section 522: Gasoline or Motor Vehicle Service Stations

Gasoline or motor vehicle service stations shall comply with the following:

1. Lot size shall be at least two acres.
2. Lot frontage shall be at least 200 feet.
3. Lot depth shall be at least 200 feet.
4. Pumps, lubricating and other service devices shall be located at least fifty feet from the street line and side and rear lot lines.
5. All fuel and oil shall be stored at least thirty-five feet from any property line.
6. All automobile parts and dismantled vehicles are to be stored within a building unless screened from public view.
7. No signs shall extend beyond the pumps, nor exceed fifteen feet in height.
8. There shall be no more than two access driveways from the street. The maximum width of each access driveway shall be forty feet.
9. A suitable landscaped area shall be maintained at least five feet in depth along all street frontages not used as driveway.
10. Changes from these requirements are possible with Planning Commission review and approval.

Section 523: Campers

It shall be unlawful for any person to park a camper except:

1. In an approved campground;
2. In an approved camper sales lot; or
3. The owner of a camper may park one camper on his/her own property provided it is:
 - (a) Parked at least fifty feet from the property line;
 - (b) Not used as permanent living quarters that is lived in for more than thirty (30) days consecutively and;
 - (c) Not hooked up to water or sewer utilities.

Invited guests may also park campers in the same manner as required of any owner on his/her own property for a period not to exceed thirty days.

Section 524: Roadside Agricultural Stands

Temporary roadside stands for the sale of agricultural products raised on the property may be

erected provided that:

1. No stand shall be in continuous operation for more than six (6) months during any one calendar year.
2. No stand shall be closer to any lot line than twenty feet.
3. Access to or egress from any stand shall not create a traffic hazard.

Section 525: Filling Land

In any district a zoning permit is required for the depositing of rock, concrete, stone, grave, sand, cinders, stumps and soil used for the filling of land. The Administrative Officer may issue a permit provided the applicant demonstrates that the activity will not significantly alter existing drainage patterns, cause soil erosion, or result in any hazard or expense to the community. State laws governing the filling of land must be adhered to.

Section 526: Extraction of Soil, Sand, or Gravel

In accordance with Section 4407(8) of the Act, the removal of soil, sand, gravel or stone for sale, except when incidental to construction of a building on the same premises, shall be permitted only upon approval of a plan for the rehabilitation of the site by the Planning Commission and after a public hearing.

In any district the following shall apply:

1. Before approval of any new sand, gravel, or stone operation, or extension thereof, a performance bond shall be secured from the applicant sufficient to ensure that upon completion of the extraction operations the abandoned site will be left in a safe, attractive and useful condition in the interest of public safety and general welfare. The owner shall submit a plan of proposed improvements to accomplish this end. The bond shall be sufficient to cover the cost of redevelopment of the site as a park; lake, recreation area or other usable open space.
2. The removal of all material shall be conducted to result in the improvement of the land, having due regard to the contours in the vicinity such as leveling slopes and removing hills. The digging or creating of pits or steep slopes shall not be permitted, unless provision is made to refill such pit.
3. The excavation operation sites shall be graded smooth and left in a neat condition. Cut slopes and spoil banks shall not be allowed to remain. The operation site shall be fertilized, mulched and reseeded to establish a firm cover of grass or other vegetation sufficient to prevent erosion under the supervision and to the satisfaction of the Administrative Officer.
4. All surface drainage affected by excavation operations shall be controlled by the owner to prevent erosion debris and other loose materials from filling any drainage course, street, or private property. All provisions to control natural drainage water shall meet with the approval of the Administrative Officer.
5. No excavation, blasting or stockpiling of materials shall be located within two hundred feet of any street or other property line.
6. No power-activated sorting machinery or equipment shall be located within three hundred feet of any street or other property line, and all such machinery shall be equipped with satisfactory dust elimination devices.
7. All excavation slopes of more than two to one shall be adequately fenced as determine by the Administrative Officer.

8. Extension of an existing non-conforming operation shall not be permitted.
9. The Planning Commission may attach any additional conditions, as it may find necessary for the safety and general welfare of the public.

Section 527: Energy Systems

A. General requirements for energy systems:

1. Every application for energy generation or energy transmission projects, as per this section, will be required to address conformity with the Panton Town Plan and the Community Standards set forth in the Panton Town Plan.
2. The Development Review Board may require, at the applicant's expense, any viewshed studies, visual simulations, additional visual and natural resource analysis to satisfy concerns with regard to effects or impacts on natural, cultural, recreational or scenic resources, as identified or set forth in the Panton Town Plan.
3. Decommissioning for Wind and Solar Projects: In order to preserve the aesthetic qualities of Panton's rural character and to support the orderly development of the region, each solar and wind project in the Town of Panton shall be decommissioned at the end of its useful life and the property shall be restored to its pre-project condition, including but not limited to the removal of all above-ground installed infrastructure that is part of the project. Developers of all solar projects and landowners hosting solar and wind projects shall jointly and severally provide the Town with appropriate assurances to guarantee funding exists to decommission the project.
4. Good Neighbors: Solar and wind developers should practice a "good neighbor policy". The siting of the solar and/or wind project should be done in such a manner that the solar or wind project creates no greater burden on neighboring property owners or public infrastructure than it does on the property on which it is sited.
5. Screening and Development Plans; Complaints: Copies of all PSB orders authorizing the construction, operation and maintenance of solar or wind projects are available to the public on the PSB's website (<http://psb.vermont.gov/orders>). Hard copies of all applicable PSB orders and screening plans related to Panton projects shall be maintained for public viewing at the Panton Town Clerk's Office during normal business hours. Any person who believes that the screening or site development requirements of a PSB order applicable to a particular Panton solar or wind project, and their related infrastructure elements are not being met may contact the PSB, the Vermont Department of Public Service, or the Panton Select Board and make his or her concerns known. Any person who believes that the screening plan requirements for a new commercial development are not being met may contact the Panton Select Board and make his or concerns known.
6. Collector, Distribution and Transmission Lines:
 - a) Collector, distribution and transmission lines required for any energy development shall be suitably located and reviewed by the DRB as part of the review and approval of an energy project or as part of a specific development or line upgrade.
 - b) Applications to construct new collector, distribution or transmission lines shall address the requirements of Criterion 8 in Act 250 relative to aesthetics.
 - c) Where appropriate or necessary to conform to community standards, or to reduce or eliminate impacts to neighboring properties and public vantage points, collector, distribution and transmission lines shall be located or designed to suitably reduce or eliminate such impacts.
 - d) Mitigation measures to effectively screen or reduce impacts to scenic, cultural, recreational or natural resources shall be put in place. Such mitigation measures

shall include but not be limited to burial of collector or distribution lines, structure design, height and placement, Right of Way location, and screening. Any required screening shall be compliant with Section 550 on Landscaping.

7. Mitigation: The Town of Panton retains the right to request or require, as part of the review and approval process, alternative mitigation measures to offset any identified or projected impacts to town interests, resources and properties. Mitigation measures may include those that address burdens or impacts to the maintenance or management requirements associated with town properties, roads or facilities.

B. Wind Energy Systems Requirements:

A wind energy conversion system is a conditional use with the Development Review Board considering the following criteria in addition to the general standards specified in Section 341(2):

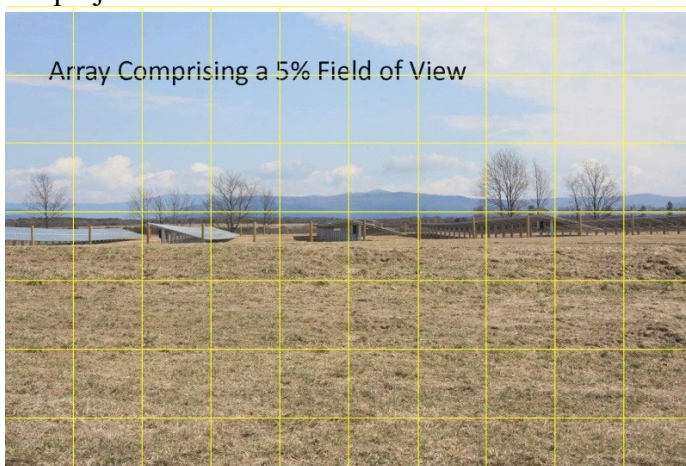
1. Climbing access to the tower shall be restricted;
2. For rotors 20 feet in diameter or less, a setback from all lot lines shall be 275 feet minus 11 feet for each foot of rotor diameter less than 20 feet;
3. Wind energy conversion systems shall be evaluated based on their relationship to neighborhood context, visual and aesthetic effects and impacts to natural resources and in accordance with the following provisions:
 - a) All wind energy systems shall be reviewed in accordance with the provisions of the Quechee Analysis, as adopted as part of Criterion 8 of Vermont Act 250. This is a two part evaluation which first determines whether or not a project will have an adverse impact and secondly determines whether or not the adverse impact is undue. This determination is and will be based on whether the project is shocking or offensive to the “average person”, whether the project applicant has proposed generally available mitigation measures, and whether the project violates any clearly written community standards.
 - b) Clearly written community standards are those applicable standards set forth in the Town Plan and designed to protect or preserve scenic, cultural, recreational and natural resources.
 - c) Sound effects from proposed wind energy systems shall conform to and not exceed those set forth by the Vermont Public Service Board for wind energy systems.
4. The distance from the base of the tower to the property line shall be a minimum of 10 feet longer than the total height of the wind energy structure including tower, turbine and to the tip of the rotor when extended to the maximum vertical height of the rotor.
5. The wind energy structure shall be a minimum of 1000 feet in distance for every 100 feet of maximum vertical height to the tip of the rotor of the wind energy system to the nearest residence unless sufficient and satisfactory mitigation has been provided to the affected landowners and as agreed upon with the DRB.
6. Any required screening shall be compliant with Section 550 on Landscaping.

C. Solar Energy Systems Requirements:

1. In addition to the General Requirements above, the following screening requirements apply for solar energy projects:
 - a. Each project, any part of which is proposed to be constructed within the Town, must be designed and constructed of materials, colors and textures that blend into the surrounding natural or built environment to the maximum extent feasible and be compliant with

Section 550 on Landscaping.

- b. Each project shall incorporate screening that (i) breaks up the visible area of the project so as to prevent unobstructed views of the project; (ii) mitigates adverse aesthetic impacts on views from residences and public highways; and (iii) harmonizes the project with the character of the surrounding landscape and neighborhood.
- c. In addition to the requirements of section 527 B 2 above, any project must incorporate sufficient screening to ensure that the visible area of the project represents no more than 5% of the field of view from any of the following: (i) any point within 150 feet of a residence, or (ii) any point on a public highway. By way of example, and not limitation, the image of solar panel front surfaces below was taken with a lens giving an equivalent field of view to that of a 50 mm lens on a 35 mm camera. The 7x10 grid imposed on the image shows the acceptable portion of a solar project visible from the vantage point: only 3.5 grid squares show solar panels out of a total of 70 grid squares, or 5% of the field of view. The remainder of the solar project (including the panels visible edge-on) shown in the photograph would have to be completely screened from the vantage point shown to meet the 5% field-of-view standard. This 5% field of view may be achieved by use of setbacks in conjunction with a planting plan or any other acceptable screening technique. Any person submitting an application for approval of a project covered by this regulation to the Vermont Public Service Board for a Certificate of Public Good shall demonstrate at the time of filing that the proposed project complies with this regulation. This demonstration may be made by providing a photograph or schematic elevation of the proposed site from the nearest public right of way with views of the project site. Simulations indicating the proposed project infrastructure shall indicate the vantage point from which it was made and shall depict proposed panels, racks, inverters, structures, poles, wires and any fencing or screening proposed to be planned or constructed. Any photograph or schematic so submitted shall be at least 8x10 inches in size and have a 7x10 grid imposed upon it, as in the example below. Burden of proof that an applicant has complied with this regulation shall rest at all times with the applicant proposing such project.



- d. Plantings for screening purposes shall be of sufficient height, density and maturity to achieve the screening standard within three years of planting.
- e. Plantings shall be made in accordance with a screening maintenance plan, included with application for and made a condition of the projects Certificate of Public Good. Such screening maintenance plan shall include as a minimum:
 - i. A schematic showing the location of both existing and planned planting material,

- earthwork and structures.
- ii. A plant material list including all plants to be made as part of the screening, listed by both common and botanical name, the size at installation, expected size at maturity, and expected number of years to maturity.
 - iii. The name, telephone number, street address, and e-mail address of the person or persons responsible for screening installation and maintenance, the timing of installation, and a plan for ensuring year-round screening compliance.
 - iv. A copy of an on-going screening maintenance contract (which may have commercially sensitive price terms redacted). Such contract shall be for a term of no less than three years.
 - v. Pre-construction photographic images of the site to document the site's condition prior to planting or project construction. These images shall set the standard for decommissioning.
- f. The screening requirements of this Section apply year-round during the entire period of existence of a project, whether or not a solar project is still in service. Screening must remain in place and be maintained until a project has been fully decommissioned or deconstructed and the site restored to its condition prior to installation or construction.
 - g. A project shall be sited within a parcel in such a manner as to make maximum use of pre-existing vegetation, hedgerows, hills, ridges, buildings, and other topographical features and structures that naturally screen the project, thereby minimizing the need for the installation of new screening materials.
 - h. Where new screening materials must be installed or planted to ensure compliance with this regulation, natural, living, native screening materials such as native trees and shrubs shall be used in lieu of artificial screening materials such as walls, fences, and other structures; provided, however, that limited use of artificial screening materials is permissible to the extent that (i) the use of living screening in that area is not feasible, and (ii) the artificial screening is of size, scale and materials that are consistent with the character of the surrounding neighborhood and landscape. All planting must be completed within four weeks of the date on which the solar project first feeds electricity onto the electric grid (the "in service date"), or in the case of new commercial development the completion of principle construction. A solar project with an in-service date falling during frozen ground conditions must complete all plantings within four weeks of the following spring thaw.
 - i. Maintenance of landscaping and screening shall be the joint and sole responsibility of the developer and property owner on which the project is constructed, maintained and operated. The screening shall be maintained for the life of the project. Screening maintenance shall include at a minimum: watering, dead heading, trimming where appropriate, prompt replacement of any diseased, damaged or dead plant material, and control of invasive species, and in the case of any project such obligation shall be a condition of any Certificate of Public Good granted by the PSB, or any successor administrative agency having jurisdiction over such project. A landowner hosting a project – whether by using his land, leasing his or her land to a project developer or by grant of easement or other means – who allows screening vegetation contained in an approved planting plan to die and does not replace or repair such screening within three weeks of written notice by the Town shall be subject to a civil fine of up to the maximum amount allowed by 24 V.S.A. § 4451 or any successor statute for each day that the condition remains un-remedied, as well as all Town costs, including but not limited to legal fees, related to enforcement of the same. No payment of a civil penalty under this subsection shall relieve a project developer from responsibility for maintaining screening in accordance with the project's approved screening plan.

- j. Notwithstanding anything in this regulation to the contrary,
 - i. No screening shall be placed in the public right of way needed by the Town or by the State of Vermont for road plowing or maintenance, including but not limited to areas needed for installation and maintenance of culverts and ditches, and
 - ii. No screening shall be planted or allowed to grow in a manner that casts a shadow over the public right of way from October to May, thereby creating a cold spot in the road. The burden shall be on the project developer to demonstrate that any screening plantings near a public right of way do not and will not cast such shadows in the winter months.
2. Project Siting: A project's location in the landscape constitutes a critical element in the aesthetic siting of a project. Poor siting cannot be adequately mitigated. Accordingly, the first element any solar developer must consider is the proposed site's aesthetic impact on the surrounding landscape.

Good solar project sites generally have several of the following characteristics:

- Roof-mounted systems;
- Systems located in close proximity to, or screened by, existing large-scale commercial, industrial or agricultural buildings;
- Proximity to existing hedgerows, evergreen vegetation, berms, hills or other topographical features that naturally screen some aspects of the proposed solar project;
- Reuse of former brownfields or otherwise impacted property, which otherwise complies with the set-back requirements of this regulation

Poor solar project sites generally have several of the following characteristics:

- No natural screening;
- Topography that causes the solar project to be visible against the skyline, or from hiking trails or scenic bicycle routes – and specifically the Lake Champlain Bikeway, public, historic or scenic places, scenic roads such as the route of the Lake Champlain Byway and common vantage points like roads or neighborhoods;
- A location that requires clear-cutting or fragmentation of the working landscape, including forestland, open farm land, and primary agricultural soils, as mapped by the U.S. Natural Conservation Service.
- Rare, threatened, or endangered species habitat, or communities as mapped or identified through site investigation, and core habitat areas, migratory routes, and travel corridors;
- A location in proximity to and interfering with a significant viewshed. Significant viewsheds within the Town of Panton include the Town's scenic by-ways and historic districts, and scenic resources identified in the Panton Town Plan Sections 12, 13, 14 and 15.
- Screening should screen the project array and related components but not block significant or long distance views beyond the project site.

3. This subsection sets minimum Panton setback requirements that shall apply to solar projects in the Town approved by the Vermont Public Service board under 30 V.S.A. § 248 and may be used in conjunction with physical screening to achieve the Town's solar project screening standard.
 - a. The minimum setbacks from a State or municipal highway, measured from the edge of

the traveled way shall be:

- i. 200 feet for a facility with a plant capacity exceeding 150 kW; and
 - ii. 100 feet for a facility with a plan capacity less than or equal to 150kW but greater than 15 kW.
- b. From each property Boundary that is not a State or municipal highway:
- i. 100 feet for a facility with a plant capacity exceeding 150 kW; and
 - ii. 50 feet for a facility with a plan capacity less than or equal to 150kW but greater than 15 kW.
- c. This subsection does not require a setback for a facility with a plant capacity equal to or less than 15 kW.
- d. No solar project shall be located within 1,000 feet of any other solar project.
- e. The requirements of the setbacks in this section may be decreased to the minimums set forth in Act 56 if the project developer can demonstrate that the topography of a site naturally screens 100 percent of project view from the boundary line in question and that no portion of the solar project or any associated screening will affect road maintenance or plowing.

Section 528: Planned Unit Development

In accordance with the provisions set forth in 4417 of the Act, and in those districts in which residential uses are allowed, the modification of the district regulations by the Planning Commission is permitted simultaneously with approval of a site plan under the following procedures:

1. Purpose: The purpose of the planned unit development (PUD) provisions is to encourage flexibility of design and development of land in such a manner as to promote the most appropriate use of land, to facilitate the adequate and economic provision of streets and utilities, to preserve the natural and scenic qualities or open land, to provide for a mixture and variety of housing types at different densities, and to provide for the development of existing lots which because of physical, topographic or geological conditions could not otherwise be developed.
2. Application Procedure: A plan of the site shall be submitted to the Development Review Board in accordance with the application procedures governing subdivision of property showing the location, height and spacing of buildings, open spaces and their landscaping, streets, driveways and off-street parking spaces, water systems and sewage disposal plans, unique natural or man-made features, and physical conditions of the site, accompanied by a statement setting forth the nature of all proposed modifications, changes or supplementation of existing zoning regulations. Copies of any appropriate agreements or restrictive covenants shall be included.
3. Public Hearing: The Development Review Board shall hold at least one public hearing pursuant to Section 340 of These Regulations.
4. General Standards for Review: The following general standards shall be met in order for the Development Review Board to approve the application:
 - (a) The PUD is consistent with the municipal plan.
 - (b) The overall density of the project does not exceed the number of dwelling units which could be permitted in the Planning Commission's judgment, if the land (excluding the area within the boundaries of any proposed road) were subdivided into lots in accordance with the district regulations.
 - (c) The uses proposed for the project are residential; dwelling units may be of varied

- types, including one-family, two-family, or multi-family construction or commercial construction of a type allowed within the district in which the property is located.
- (d) The PUD is an effective and unified treatment of the development possibilities of the project site, and the development plan makes appropriate provision for preservation of streams, and stream banks, steep slopes, wet areas, and unique natural and man-made features.
 - (e) The development plan is proposed over a reasonable period in order that adequate municipal facilities and services may be provided.
 - (f) Where possible, buildings shall be sited to take advantage of southeast, south or southwest orientations. No building in the development shall cast shadows which will preclude the proposed or potential use of solar energy collectors which are located upon and/or within the most southern facing wall or roof of any other dwelling unit within the development, except where topographical conditions make compliance unreasonable.
 - (g) Any modification of the zoning regulations approved under this section shall be specifically set forth in terms of standards and criteria for the design, bulk and spacing of buildings and the sizes of lots and open spaces which shall be noted on or appended to the application.
 - (h) All applicable provisions of the subdivision regulations and sections of this ordinance shall also be addressed or considered, as appropriate, in any PUD application and plans.
5. Specific Standard for Review: The following specific standards shall be met in order for the Development Review Board to approve the application:
- (a) District regulations on height and spacing between main buildings shall be met unless otherwise waived by the Development Review Board.
 - (b) To ensure adequate privacy for existing or proposed uses adjacent to the PUD, structures on the perimeter of the PUD shall be set back 50 feet and screening may be required in accordance with Section 550 on Landscaping.
 - (c) Adequate water supply and sewage disposal facilities shall be provided.
6. Open Space: If the PUD results in lands available for parks, recreation, open space or other municipal purposes, the Development Review Board as a condition of its approval may establish such conditions as to the ownership, use and maintenance of such land as it deems necessary to assure the preservation of such lands for their intended purposes.

Section 535: Campground Permits

1. No person or persons shall construct or operate a campground without first obtaining conditional use approval from the Development Review Board and a permit from the Administrator Officer. Before approving a permit, the Development Review Board shall require a performance bond from the applicant to assure that the area is constructed and maintained in a satisfactory manner.
2. Application for approval shall be made to the Development Review Board. The application shall be accompanied with the site plan and drawings prepared by a professional engineer showing the property lines and area of the campground, a contour map showing the proposed grading of the area, a layout of the roads, walkways, campsites, parking areas, garbage collection stations, electrical distribution, water lines, sanitary sewer facilities and storm sewer drainage facilities.

Section 536: Campground Standards

1. A campground shall not have less than 10 acres.
2. A campground shall provide for individual vehicles, access driveways, and parking.
3. Each campsite shall have a least 2550 square feet with each dimension at least 50 feet with the remaining 2500 square feet in common area.
4. All access driveways within a campground must be a least thirty feet in width and have a compacted gravel surface (or other type of all-weather road) at least twenty feet in width.
5. The water supply source for the campground must be approved by the State Department of Environmental Conservation or other appropriate agency.
6. The campground shall have provisions for public toilets and sewage disposal that complies with the State Department of Environmental Conservation regulations.
7. The strip of land at least twenty feet in width shall be maintained as a landscaped area abutting all public roads. A strip of land at least fifty feet in width shall be maintained in an area abutting all property lines.
8. The campground shall be operated on a seasonal basis only 120 days each calendar year.

Section 542: Reduction of Lot Area

No lot shall be so reduced in area that the area, yards, frontage, coverage or other requirements of these regulations do not conform to the requirements herein prescribed for each district. The provisions of this section shall not apply when part of a lot is taken for a public purpose, or unless as a part of an approved PUD.

Section 543: Required Area or Yards

Space required under these regulations to satisfy area, yard or other open space requirements in relation to one building shall not be counted as part of a required area, yard or space for any other building.

Section 544: Projection in Yards

Every part of a required yard shall be open from grade level to the sky unobstructed, except for vegetation and for the ordinary projections of sills, cornices, pilasters, chimneys and eaves, provided that no such projections may extend more than two feet into any required yard, measured from the base of the building. Additionally, certain architectural features needed for the operation of active and passive solar energy systems, including but not limited to overhangs, detached solar collectors, reflectors, and piping may be permitted by the Development Review Board to project into the required yard.

Section 545: Corner Lot Exceptions

Any yard adjoining a street shall be considered a front yard. A corner lot shall be considered to have only front yards and side yards.

Section 550: Landscaping

1. Where any non-residential development abuts any residential property or neighborhood, a strip of land at least fifteen feet in width shall be maintained as a landscaped area in the front, side, or rear yards, which abut the residential property or neighborhood district.
2. The outdoor storage of trash shall be screened or hidden from public view and the view of persons in residential districts. In commercial or industrial districts such storage shall be screened and located to the rear of the buildings.
3. Landscaping required by these regulations should consist, at a minimum of a landscape plan to be reviewed by the Planning Commission. The plan shall contain trees and/or

shrubs suitable to provide appropriate screening. The plan shall indicate tree sizes, species, numbers and locations. The landscaped area shall be located to minimize potential shading of south-facing surfaces of adjacent residences. Suitable ground cover is required for the entire landscaped area.

4. The owners and/or developers of a commercial project requiring screening shall develop a landscape plan that effectively addressed the screening requirements to the satisfaction of the DRB and any abutting landowner. Landscaping shall be developed in a continuous and effective manner, with a diversity of species for longevity and hardiness to accomplish the necessary screening.
5. Native or naturalized plants with proper planting mix and and in good health shall be used in all planting plans. For recommended species use the guide entitled *Trees for Vermont Communities*(fpr.vermont.gov/sites/fpr/files/Forest_and...and_Trees/.../VTTree%20Guide.pdf)
6. Street trees and landscaping may be required, upon the review of the Development Review Board, for Subdivisions and Planned Unit Developments and to be consistent with the provisions and requirements for such developments.
7. New development shall preserve existing vegetation to the greatest extent possible unless such vegetation impedes the logical and possible development of the property. Hedgerows and landscape buffers which serve water quality and stormwater management purposes shall be maintained unless the applicant can demonstrate that such existing landscape elements are necessary for removal to allow for the reasonable use of the property. If hedgerows and vegetation are removed, the DRB may require suitable and appropriate replacement plantings to provide the ecological services lost by the removal of existing vegetation.
8. Required screening shall be maintained for the life of the project.

Section 560: Grading

No grading, cutting or filling shall be carried out in any district, which leaves the slope of the finished grade in excess of two to one. Such grades shall not create drainage and/or erosion impacts to adjoining landowners. Slopes of 2:1 shall be stabilized by use of cover or structural means. Earth moving projects that necessitate excavation and grading for development purposes require a zoning permit.

Section 570: Height Restrictions

Through the conditional use review procedure, the Development Review Board may permit a structure to exceed the applicable building height maximum if the general standards of Section 350-358 are met and if the structure or extension thereof is a steeple, bell tower, fire tower, antenna, monument, cooling tower, chimney, flagpole, electric transmission pole, wind energy conversion system, or other similar structure meeting all other applicable requirements of these bylaws.

Section 595: Freestanding Dishes and Antennas

The installation of freestanding dishes and antennas shall meet the minimum setback, lot coverage, and height requirements for the district in which it is located, and shall be permitted only in the rear yard of a dwelling or other building served. Alternative siting will be permitted by the Development Review Board if the following criteria are met:

1. Quality reception requires alternative siting.
2. Screening that does not impair reception may be required to minimize the visibility of the installation from the public right-of-way and neighboring properties.

Article VI: Transportation, Access, Safety and Parking

Section 610: Parking in Neighborhood Commercial Zones from Adjacent Properties

1. Parking lots shall be screened or buffered as deemed appropriate by the Development Review Board.
2. Parking of motor vehicles may be allowed in setback areas.

Section 611: Off-Street Parking Space Requirements

For every building hereafter erected, altered, extended, or changed in use, there shall be provided off-street parking spaces at least as set forth below. A required driveway shall be at least twenty feet clear in width, except for one and two-family uses.

1. Residential Uses: One-family and two-family dwelling units: one parking space for every unit.
2. Residential Health Care Facility: One parking space for every two beds.
3. Community Center: One parking space for each four fixed seats, or every two hundred (200) square feet of floor space, whichever is more.
4. Professional Office: One parking space, plus one additional parking space for every three (300) hundred square feet of office space.
5. Commercial, business, and unspecified uses: One parking space for every motor vehicle used in business, plus one parking space for every two (200) hundred square feet of floor area.

Section 620: Access Permit

Any activity for which a zoning permit is required and which involves the construction or modification of a driveway intersecting with a public right-of-way shall obtain an access permit from the Administrative Officer after an on-site inspection of the area by said officer and approval by the Selectboard.

1. All driveways are to be located at least one- (100) feet from a street line intersection for all uses.
2. All driveways shall have suitably installed tubing or culverts required for the purpose of assisting the flow of surface water.
3. The Administrative Officer shall have the power to deny the use of such driveways or enjoin the owner from completing such driveways should the owner fail to obtain such permit and approval.
4. The Planning Commission may require changes or additions in relation to yards, driveways, driveway entrances and exits, and landscaping and the location and height of buildings and enclosures to ensure safety, to minimize traffic difficulties and to safeguard adjacent properties.

Section 622: Obstruction of Vision

On a corner lot, within the triangular area formed by the intersection of two roads and a line joining them at points twenty-five feet away from their intersection, there shall be no obstruction

to vision between the height of three (3) feet and ten (10) feet above the average grade of each street.

Article VII: Signs, Temporary, Information Regarding Location

Section 710: General

No signs shall be permitted without meeting the following criteria:

1. Be in the public interest and not to the detriment of the public safety or welfare.
2. Not be detrimental to surrounding properties.
3. Be of a character, size and location that will be in harmony with the orderly development of the district.
4. All applicants for sign permits must submit a drawing showing all proposed dimensions: sign design, color, mounting method and location on property.
5. All permitted signs shall be located outside Town Road the Rights of Way unless for purposes of traffic control, which is subject to the review and approval of the Panton Selectboard. Places and times for meetings of civic organizations and churches may be included as part of or next to exempt town welcome signs, at the edge or outside the Right of Way, and as provided for in Title 10, Chapter 21, Tourist Information Services. All other signs adjacent to highways or within highway rights of way are subject to the provisions of Title 10, Chapter 21, Tourist Information Services.

Section 720: Off Premises Signs

Any sign located elsewhere than upon the lot containing the subject of the sign shall conform to State Statute and Regulation.

Section 730: Signs in Residential Districts

The following signs are permitted when located on the immediate property:

1. One professional or home occupation sign, not exceeding four (4) square feet.
2. One temporary real estate sign, not exceeding six (6) square feet.
3. Signs identifying any non-residential building or use permitted in residential districts, not exceeding twelve (12) square feet.
4. Directional or information sign, not exceeding four (4) square feet, or signs necessary for public safety or welfare, upon approval of the Planning Commission.

Section 740: Signs in Commercial Districts

The following signs are permitted when located on the immediate property:

1. All signs permitted under Section 730.
2. One business sign not larger than one square foot for each lineal foot of frontage occupied by the establishment, but not to exceed twenty (20) square feet. Such signs may be double sided if oriented perpendicular to the traveled roadway on which the business is located
3. One directory sign not exceeding ten (10) square feet.
4. Any wall, projection, and/or ground steps shall not exceed the highest point of the building's roof.
5. Every projecting sign shall:

- (a) Not exceed more than four (4) feet from the building wall.
- (b) Not be less than ten (10) feet above the surface of a public walkway area.
- (c) Not exceed twelve (12) square feet.

6. Every ground sign shall:

- (a) Not exceed fifteen (15) feet in height above the finished grade.
- (b) Be set back at least ten (10) feet from any street line or lot.
- (c) Not exceed sixteen square feet in overall area.

7. Sign Lighting

- (a) Only commercial businesses or approved bed and breakfast establishments may be permitted night lighting of signs.
- (b) Sign lighting must be confined to lighting the sign face and message area only, there shall be no off-site light glare or trespass and lighting shall not create a hazard for motorists.
- (c) All lighting shall be shielded so as to focus the light on the sign face only and be of suitable illumination to promote legibility and eliminate any glare or undesirable light impacts.
- (d) Any internal or window signs that are lit and visible to the public shall be lit only during business hours.

8. Sign Review

- (a) The DRB may request submission of sign and sign lighting designs and specifications, including photometrics and illumination levels prior to approval of any commercial signs.
- (b) All signs shall be designed in a manner that is consistent with the character of the district and neighborhood and shall be of sufficient legibility so as to ensure adequate visibility and safety when viewed from town roadways.

9.. Roof signs shall not be permitted in any zoning district.

10. No off premise signs are allowed unless permitted under State of Vermont sign exemptions, as part of the town entry signage (for religious, cultural or service organizations) or as part of the Vermont Official Business Directory Sign system, as administered by the Travel Information Council.

Section 760: Computation of Permissible Sign Area

When computing the total permissible sign area for any use:

- 1. Existing signs shall be included.
- 2. The total areas of all signs shall not exceed the requirements as set forth in these regulations.
- 3. Signs consisting of freestanding letters, numerals, or other devices shall include any intervening spaces between them.
- 4. Back-to-back signs may be counted as one sign.

Section 770: Traffic, Hazard, Safety, and Obstruction

Every sign shall be designed and located in such a manner as to:

1. Not impair public safety.
2. Not restrict clear vision between a sidewalk and street.
3. Not be confused with any traffic sign or signal.
4. Not prevent free access to any door, window or fire escape.

Section 780: Illuminating and Flashing Signs

1. Signs may be illuminated by a steady light provided that such lighting is shielded to not illuminate or reflect onto other properties and roadways.
2. Flashing, oscillating, or revolving signs shall not be permitted, unless necessary for public safety or welfare.
3. Message signs and internally illuminated signs may be permitted in commercial districts provided they meet the requirements as set forth in these regulations.

Article VIII: Performance Standards

No land or building in any zoning district shall be used or occupied in any manner to create dangerous, injurious, noxious or otherwise objectionable conditions in such a manner or in such amount as to adversely affect the reasonable use of the surrounding area of adjoining properties. The following specific standards are set forth to implement this purpose. The burden of proof that the following standards are met shall be on the applicant.

Section 810: Noise

No noise, which is excessive at the property line and represents a significant increase in noise levels in the vicinity of the development to be incompatible with the reasonable use of the surrounding area, shall be permitted. In general, the sound pressure should not exceed 70 decibels at the property line at any time, except for agricultural uses.

Section 820: Glare, Light and Reflection

No glare, lights, or reflection shall be permitted which are nuisances to other property owners or tenants of which could impair the vision of a driver of any motor vehicle or which are detrimental to public health, safety, and welfare. However, reflections from solar energy collectors, which are part of an operating solar energy system, shall not be considered a nuisance to other property owners and tenants.

Section 830: Fire, Explosive, and Safety Hazards

No fire, explosive or safety hazard shall be permitted which significantly endangers other property owners or which results in a significantly increase burden on municipal facilities.

Section 831: Violations

The Development Review Board will review any impact or possible violations to these performance standards with professional/technical assistance if necessary, to ascertain the nature of the impact and possible mitigation measures if any.

Based on this review the Development Review Board will propose appropriate action, including but not limited to a recommendation to the Selectboard to issue an order to discontinue the violation or to propose acceptable mitigation efforts.

Article IX: Flood Hazard Area Regulations

Section 901: Statutory Authorization

To effect the purposes of 10 V.S.A. Chapter 32, and in accord with the Vermont Planning and Development Act, 24 V.S.A., Chapter 117, Section 4410, 4411 and 4424, there are hereby established zoning regulations for areas of special flood hazard in the Town of Panton.

Section 902: Statement of Purpose

It is the purpose of these regulations to promote the public health, safety, and general welfare, to prevent increases in flooding caused by the uncontrolled development of lands in areas of special flood hazard, and to minimize losses due to floods by:

1. Restricting or prohibiting uses that are dangerous to health, safety, or property in times of flood or cause excessive increase in flood heights or velocities;
2. Requiring that uses vulnerable to floods, including public facilities that serve such uses, shall be protected against flood damage at the time of initial construction;
3. Protecting individuals from buying lands that are unsuited for their intended purposes because of flood hazard.

Section 903: Land to Which These Regulations Apply

These regulations shall apply to all lands in the Town of Panton identified as areas of special flood hazard on the Federal Emergency Management Agency (FEMA) Flood Insurance Rate Maps (FIRM), dated September 18, 1986, and any revisions thereto.

Section 904: Official Flood Hazard Area Map

The official Flood Hazard Area Map shall consist of the FEMA Flood Insurance Study, including the Flood Insurance Rate Maps (FIRM), and Flood Boundary and Floodway Maps. The Official Flood Hazard Area Map, together with all explanatory matter thereon and attached thereto, is hereby adopted by reference and declared to be part of these regulations.

Section 905: Interpretation of District Boundaries

The Administrative Officer shall determine the boundaries of any designated area of special flood hazard by utilizing the base flood elevation data contained in the Flood Insurance Study, or in the absence of such data, by obtaining, reviewing, and reasonably utilizing any base flood elevation data available from a federal or state agency. Appeals with respect to a boundary interpretation shall be made by filing a notice with the Secretary of the Development Review Board within fifteen days of the decision or act.

Section 906: Permitted Uses

Upon issuance of a permit the Administrative Officer, the following open space uses shall be permitted within the area of special flood hazard to the extent that they are not prohibited by any other ordinance and provided that they do not require the erection of structures or storage of materials and equipment, the borrowing of fill from outside the flood hazard area, or channel modification or relocation, and do not obstruct flood flows, affect the water carrying capacity of the regulatory floodway or channel, or increase off site flood damage potential.

1. Agricultural uses, such as general farming, pasture, orchard, grazing, outdoor plant nurseries, truck farming, and forestry.

2. Recreation uses, such as parks, camps, picnic grounds, tennis courts, golf courses, golf driving ranges, archery and shooting ranges, hiking and riding trails, hunting and fishing areas, game farm, fish hatcheries, wildlife sanctuaries, nature preserves, swimming area, and boat launching sites.
3. Accessory residential uses, such as lawns, gardens, parking areas, and play areas.

Section 907: Conditional Uses In Flood Hazard Area

All new construction, substantial improvement, and development uses prescribed the Town of Panton Zoning Ordinance that do not meet the requirements of Section 906 and fall within the designated area of special flood hazard are permitted only upon the granting of a conditional use permit by the Development Review Board in accordance with the procedures and requirements of Sections 910, 911 and 912 of these regulations.

Section 908: Permit Requirements and Application Procedures

Permits are required for all proposed new construction, substantial improvements, and other developments, including the placement of mobile homes, within all lands to which these regulations apply.

All zoning permit applications shall be submitted to the Administrative Officer, on forms furnished by them, who shall determine, on application, whether or not the proposed development is located within the area of special flood hazard by the procedures established in Section 905 of these regulations.

If the proposed use will be located in the areas of special flood hazard and meets the requirements of Section 906 of these regulations, the Administrative Officer shall issue a permit. If the proposed use does not meet the requirements of Section 906, the Administrative Officer shall refer all applicants to the Secretary of the Development Review Board.

Section 909: Records

The Administrative Officer shall maintain a record of:

1. the elevation, in relation to mean sea level, of the lowest habitable floor, including basement, of all new construction or substantial improvement of structures and whether or not such structures contain a basement; and
2. the elevation, in relation and to mean sea level, to which such structures have been flood proofed.

Section 910: Conditional Use Review Application

The applicant shall submit to the Administrative Officer, by filing an application in the town offices, at least 25 days prior to the regular meeting of the Development Review Board, two (2) copies of a letter summarizing the proposed conditional use which addresses all elements of this article, and all other information necessary to illustrate compliance with these regulations and for the Development Review Board to make its decision including: property identification numbers of the property taken from the latest tax records; Name and address of the owner of record and the owners of adjoining lands; Name and address of person or firm preparing the map; Scale of Map of at least 1"=200', north point and date.

1. Upon receiving an application for a conditional use permit under these regulations, the Development Review Board shall, prior to holding a hearing and rendering a decision

thereon, obtain from the applicant:

- (a) base flood elevation data for all subdivisions and other proposed new developments greater than 50 lots or 5 acres, whichever is the smaller;
 - (b) the elevation, in relation to mean sea level, of the lowest habitable floor, including basement, of all new construction or substantial improvement of structures;
 - (c) where flood proofing is used in lieu of elevation, the elevation, in relation to mean sea level, to which any structure or substantial improvement has been flood proofed;
 - (d) certification from a registered professional engineer or architect that the flood proofed structure meets the flood proofing criteria of Section 914(1)(c) of these regulations;
 - (e) a description of the extent to which any watercourse will be altered or relocated as a result of the proposed development.
2. In addition, the Development Review Board shall require such of the following information, as it deems necessary to determine the suitability of the particular site for the proposed use:
 - (a) plans in triplicate, drawn to scale, showing the location, dimensions, contours, and elevation of the lot; the sign and location on the site the existing or proposed structures, fill or storage of materials; the location and elevations of streets, water supply, and sanitary facilities; and the relation of the above to the location of the channel, floodway, and base flood elevation;
 - (b) a typical valley cross-section showing the channel of the stream, elevation of land areas adjoining each side of the channel, and cross-sectional areas to be occupied by the proposed development;
 - (c) a profile showing the slope of the bottom of the channel or flow line of the stream;
 - (d) specifications for building construction and materials, flood proofing, mining, dredging, filling, grading, paving, excavation, or drilling, channel improvement, storage of material water supply, and sanitary facilities.
3. In unnumbered A zones, the Development Review Board shall obtain, review, and reasonably utilize any base flood elevation data available from the federal, state, or other source, as criteria for approval of all new construction and substantial improvements under Section 914.
4. The Development Review Board shall notify adjacent communities and the Vermont Department of Water Resources before approval of an alteration or relocation of a watercourse and shall submit copies of such notifications to the FEMA Administrator.
5. The Secretary of the Development Review Board shall transmit one copy of the information required by subsections 910(1) and 910(2) to the Vermont Department of Water Resources in accordance with 24 V.S.A., Section 4424(d).
6. In reviewing each application, the Development Review Board shall consider the evaluation of the Vermont Department of Water Resources and shall determine that the proposed use will conform to the development standard of Section 914 of these regulations.
7. In accordance with 24 V.S.A., Section 4424(d), no permit may be granted for new construction or the development of land in any area designated as a flood plain by the Vermont Department of Water Resources prior to the expiration of a period of thirty (30) days following the submission of a report to the Vermont Department of Water

Resources under Section 910(5) above.

Section 911: Public Notice and Review Procedure

The Development Review Board shall give public notice of hearing as specified in Section 340(1) (a) of these regulations. The Development Review Board shall review this application pursuant to the review procedure established in Section 340(2) of these Regulations and pursuant to any rules of procedure it adopts.

Section 912: Review Criteria for the Development Review Board

In reviewing each application, the Development Review Board shall consider:

1. the danger to life and property due to increase flood heights or velocities caused by encroachments;
2. the danger that materials may be swept onto other lands or downstream to the injury of others;
3. the proposed water supply and sanitation systems and the ability of these systems to prevent disease, contamination, and unsanitary conditions under conditions of flooding;
4. the susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owners;
5. the importance of the services provided by the proposed facility to the community;
6. the necessity to the facility of a waterfront location;
7. the availability of alternative locations not subject to flooding for the proposed use;
8. the compatibility of the proposed use with existing development and development anticipated in the foreseeable future;
9. the relationship of the proposed use to the proposed comprehensive plan, insofar as it has been developed.
10. the safety of access to the property in times of flood of ordinary and emergency vehicles;
11. the expected heights, velocity, duration, rate of rise, and sediment transport of the floodwater expected at the site;
12. the costs of providing governmental and public facilities and services during and after flooding;
13. such other factors as are relevant to the purposes of this ordinance.

Section 913: Decisions

Upon the close of the hearing, the Development Review Board shall issue its decision, and any conditions included therein, pursuant to the procedure outlined in subsection 3 of Section 340 of these regulations.

Section 914: Conditions Attached to Approval

1. As a condition of approval, the Development Review Board shall specifically require that:
 - (a) all new construction or substantial improvement of any residential structure have the first floor and basement floor elevated to or above the base flood elevation, unless the Town of Panton has been granted an exception by the Administrator for the allowance of basements flood proofed below the base flood level;
 - (b) all new construction or substantial improvement of nonresidential structures have the lowest floor, including basement, elevated to or above the base level elevation, or be

- flood proofed below the base flood level in accordance with subsection (c) of this section;
- (c) the lowest floor, including basement, and attendant utility and sanitary facilities of all new construction or substantial improvement below the base flood elevation be flood proofed or that the structure is watertight with walls substantially impermeable to the passage of water and with structural components having capability of resisting hydrostatic and hydrodynamic loads and the effects of buoyancy;
 - (d) structures be designed and anchored to resist flotation, collapse, or lateral movement;
 - (e) any encroachment, including fill, new construction, substantial improvement, or other development, be prohibited that will result in any increase in flood levels within the regulatory floodway during the occurrence of the base flood discharge, except as flood control measure;
 - (f) the flood carrying capacity within any portion of an altered or relocated watercourse be maintained;
 - (g) all gas and electrical equipment, circuits, and appliances be located and constructed to minimize or eliminate flood damage;
 - (h) all new and replacement water supply systems be designed so as to minimize or prevent the infiltration of flood waters into the systems;
 - (i) all new and replacement sanitary sewage systems be designed to minimize or prevent the infiltration of flood waters in the systems and discharges from the systems into flood waters;
 - (j) on-site waste disposal systems are located to avoid impairment to them or contamination from them during flooding;
 - (k) no mobile home shall be placed in the floodway, except in an existing mobile home park or existing mobile home subdivision;
 - (l) all mobile homes to be placed in the designated area of special flood hazard or regulatory floodway are anchored to resist flotation, collapse, or lateral movement by;
2. over-the-top ties at each of the four corners of the mobile home, with two additional ties per side at intermediate locations, and mobile homes less than fifty (50) feet long requiring one additional tie per side;
 3. frame ties at each corner of the home, with five additional ties per side at intermediate points, and mobile homes less than fifty (50) feet long requiring four additional ties per side;
 - (a) all components of the mobile home anchoring system required for mobile homes placed in the designated area of special flood hazard or regulatory floodway shall be capable of carrying a force of 4,800 pounds and any additions to the mobile home shall be similarly anchored;
 - (b) within zones A 1-30, for new mobile home parks and subdivisions, for expansions to existing mobile home parks and subdivisions, for existing mobile home parks and subdivision where the repair, reconstruction, or improvement of the streets, utilities, and pads equals, or exceeds fifty (50) percent of the value of the streets, utilities, and pads before the repair, reconstruction, or improvement has commenced, and for mobile homes not placed in a mobile home park or subdivision;
 4. stands or lots be elevated on compacted fill or on pilings so that the lowest floor of the mobile home will be at the base flood level;
 5. adequate surface drainage and access for a hauler to be provided; and

6. in the instance of elevation in pilings, (1) the lots are large enough to permit steps, (2) piling foundations are placed in stable soils no more than six (6) feet above the ground level.
 - (a) an evacuation plan indicating alternate vehicular access and escape routes be filed with and approved by the Deputy Civil Defense Director for mobile home parks and mobile home subdivisions located within the designated area of special flood hazard;
 - (b) all necessary permits are obtained from those governmental agencies from which approval is required by federal or state law;
 - (c) all subdivision proposals are reasonably safe from flooding and that;
7. all public utilities and facilities serving subdivisions, such as sewer, gas, electrical, and water systems, be located and constructed to minimize or eliminate flood damage, and
8. adequate drainage is provided within subdivisions to reduce exposure to flood hazard.
9. Upon consideration of those factors in Section 912, and the purposes of these regulations, the Development Review Board shall attach such additional conditions to the granting of a permit as are necessary to meet the purposes and flood hazard area management requirements of these zoning regulations.

Section 915: Issuance and Transmission of Permits

Upon granting a permit, the Development Review Board shall send to the applicant, by certified mail, a copy of the decision. Copies of the decision shall also be mailed to every person appearing and having been heard at the hearing, to the Administrative Officer, who shall forthwith issue a permit, and to the Town Clerk as a part of the public records.

Section 916: Effective Date of Permits

No permit issued pursuant to this section shall take effect until the time for appeal in Section 4465 of this title has passed, or in the event that a notice of appeal is properly filed, no such permit shall take effect until adjudication of that appeal by the Development Review Board is complete and the time for taking an appeal to the environmental court has passed without an appeal being taken. If an appeal is taken to the environmental court, the permit shall not take effect until the environmental court rules in accordance with 10 V.S.A. § 8504 on whether to issue a stay, or until the expiration of 15 days whichever comes first.

Section 917: Appeals

An interested person, as defined in 24 V.S.A., Section 4464(b), may appeal a decision of the Development Review Board to the Environmental Court in accordance with the provisions of 24 V.S.A., Section 4471 and Section 399 of these regulations. .

Section 918: Variance

1. Variances shall be granted by the Development Review Board only:
 - (a) in accordance with the provisions of 24 V.S.A., Section 4469;
 - (b) upon a determination that during the base flood discharge the variance will not result in increased flood levels in the designated regulatory floodway, threats to public safety, extraordinary public expense, or create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

2. The Secretary of the Development Review Board shall notify the applicant that the issuance of a variance to construct a structure below the base flood level:
 - (a) will result in increased premium rates for flood insurance commensurate with the resulting increase in risk up to amounts as high as \$25 for \$100 of insurance coverage:
 - (b) increase risks to life and property.
3. The Secretary of the Development Review Board shall:
 - (a) maintain a record of all variance actions, including justification for their issuance, and report such variances issued to the Administrator upon request.

Section 919: Fees

The Selectboard shall establish such fees as may be necessary for the filing of notices and the processing of hearings and action thereon. All such fees shall be paid to the Secretary of the Development Review Board upon application for a conditional use permit under these regulations.

Section 920: Warning of Disclaimer of Liability

These regulations do not imply that land outside the areas of special flood hazard or land uses permitted within such districts will be free from flooding or flood damages. These regulations shall not create liability on the part of the Town of Panton or any town official or employee thereof for any flood damages that result from reliance on this ordinance of any administrative decision lawfully made there under.

Section 921: Precedence of Regulations

The provisions of these regulations shall take precedence over any conflicting and less restrictive local laws.

Section 922: Annual Report to Federal Emergency Management Agency

1. The Administrative Officer shall, to the extent possible, submit to the Administrator the information required by the FEMA annual report form with respect to the administration and enforcement of these flood hazard area bylaws.
2. A copy of the annual report shall be submitted to the state-coordinating agency.

Section 923: Definitions Specific to the Floodplain Area

Administrator: The Federal Emergency Management Administrator Area of Special Flood Hazard: The land in the flood plain within a community subject to a one percent or greater change of flooding in a given year. The area includes all A Zone designations on the FIRM, or, in the absence of the FIRM, on the FHBM. It does not include Zone B and C.

Base Flood: The flood having a one percent chance of being equaled or exceeded in any given year.

FEMA: Federal Emergency Management Agency

FHBM: Flood Hazard Boundary Map. An official map of a community, on which the Administrator has delineated both the areas of special flood hazard and the risk premium zones

applicable to the community. A FHBM is issued before the FEMA has conducted a flood study of the community.

FIRM: Flood Insurance Rate Map. An official map of a community, on which the Administrator has delineated both the areas of special flood hazard and the risk premium zones applicable to the community. A FIRM is issued after the FEMA has completed a flood study of the community.

Floodway: The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

Flood proofed or Flood proofing: Any combination of structural and nonstructural additions, changes, or adjustments to structures that reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

New Construction: Structures commenced on or after the effective date of this ordinance.

State of Construction: See FEMA definition in Section 1901.1 of the current National Flood Insurance program rules and regulations.

Substantial Improvement: Any repair, reconstruction, or improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure either (a) before the improvement or repair is started, or (b) if the structure has been damaged, and is being restored, before damage has occurred. The term does not, however, include either (1) any project for improvement of a structure to comply with existing state or local health, sanitary, or safety code specifications which are solely necessary to assure safe living conditions, or (2) any alteration of a structure listed on the National Register or Historic Places or a State Inventory of Historic Places.

Article X: Zoning Districts

Section 1001: Residential 2 (R-2)

A. Objectives and Guidelines

The purpose of this district is to provide for smaller lots where suitable water and wastewater provisions can provide for residential development along roadsides. This district comprises areas with a majority of their soil capable with least modification to adequately drain septic systems, and are generally located along existing year-round service road frontages. In order to protect the residential character of the area in this district uses should be limited to residential and agricultural uses.

B. Permitted Uses

By Right Uses:

1. One-or two-family dwellings
2. Exempt Uses (including agriculture and forestry)
3. Accessory uses
4. Home Occupations
5. Group or Residential Care Home
6. Daycare (<6 fulltime and 4 part-time)
7. Accessory apartments

Conditional Uses:

1. Park or recreation uses operated on a non-profit basis
2. Community facility
3. Nurseries and greenhouses
4. Public utility building and facilities
5. Agricultural sale and service facility
6. Residential health care facility
7. Planned Unit Development
8. Daycare (>6 fulltime and 4 part-time)
9. Other uses with impacts similar to those noted above that do not significantly change the character of the area as envisioned in the Panton Town Plan.

C. District Regulations

The provisions set forth in all prior articles of these regulations shall apply to this district when relevant. The permitted by right and conditional uses shall be subject to the specific standards of Section 1001A.

Section 1001 A: Specific Regulations for R-2 District

Lot area minimum: 2 acres

Lot frontage minimum: 200 feet

Front yard minimum: 90 feet

Rear yard minimum: 50 feet

Side yard minimum (each side): 50 feet

Building height maximum: 35 feet

Section 1002: Residential 5 (R-5)

A. Objectives and Guidelines

This district comprises areas suitable for residential use and is part of the character of rural residential and agricultural land uses predominant in this district. Lots are sized for low density to allow flexibility in site design and modification. In order to minimize the number of access points, 400-foot lot frontages are required. This district is intended to provide opportunities for residential roadside development, which is the primary permitted use. Other limited uses are subject to conditional use approval.

B. Permitted Uses

By Right Uses:

1. One-or two-family dwellings
2. Exempt Uses (including agriculture and forestry)
3. Accessory uses
4. Home Occupations
5. Group or Residential Care Home
6. Daycare (<6 fulltime and 4 part-time)
7. Accessory Apartments

Conditional Uses:

1. Park or recreation uses operated on a non-profit basis
2. Community facility
3. Nurseries and greenhouses
4. Planned Unit Development
5. Public utility building and facilities
6. Agricultural sale and service facility
7. Residential health care facility
8. Daycare (>6 fulltime and 4 part-time)
9. Other uses with impacts similar to those noted above that do not significantly change the character of the area as envisioned in the Panton Town Plan.

C. District Regulations

The provisions set forth in all prior articles of these regulations shall apply to this district when relevant. The permitted by right and conditional uses shall be subject to the specific standards of Section 1002 A.

Section 1002 A: Specific Regulations for R-5 District

Lot area minimum: 5 acres

Lot frontage minimum: 400 feet

Front yard minimum: 90 feet

Rear yard minimum: 50 feet

Side yard minimum (each side): 50 feet

Building height maximum: 35 feet

Section 1003: Residential Agricultural 10 (RA-10)

A. Objectives and Guidelines

This district comprises the majority of land in Pantan and is oriented toward agricultural and residential uses. The larger lot sizes and uses are designed to maintain the rural residential and agricultural land uses of this district.

B. Permitted Uses

By Right Uses:

1. One-and two-family dwellings
2. Exempt Uses (including agriculture and forestry)
3. Accessory uses
4. Home occupations
5. Nurseries and greenhouses
6. Group or Residential Care Home
7. Daycare (<6 fulltime and 4 part-time)
8. Accessory apartment

Conditional Uses:

1. Park or recreation uses operated on a non-profit basis
2. Agricultural sales and service facility
3. Campground
4. Community facility
5. Public utility building and facilities
6. Residential health care facility
7. Planned Unit Development
8. Daycare (>6 fulltime and 4 part-time)
9. Other uses with impacts similar to those noted above that do not significantly change the character of the area as envisioned in the Pantan Town Plan.

C. District Regulations

The provisions set forth in all prior articles of these regulations shall apply to this district when relevant. The permitted by right and conditional uses shall be subject to the specific standards of Section 1003 A.

Section 1003 A: Specific Regulations for RA-10 District

Lot area minimum: 10 acres

Lot frontage minimum: 600 feet

Front yard minimum: 90 feet

Rear yard minimum: 50 feet

Side yard minimum (each side): 50 feet

Building height maximum: 35 feet

Section 1004: Neighborhood Commercial District (NC-1)

A. Objectives and Guidelines

This district is located near the junction of Jersey Street and Pantan Road in the historic village area of the town where the town hall and town center is located. This district is intended to provide an opportunity for the residential and commercial uses that shall be compatible with and appropriate for the village character of the district and the town's need for retail and service facilities, as well as other housing options such as second floor apartments and smaller scale affordable housing units.

B. Permitted Uses

By Right Uses:

1. One-and two-family dwellings
2. Exempt Uses (including agriculture and forestry)
3. Retail store
4. Restaurant
5. Business office
6. Personal service
7. Community facility
8. Group or Residential Care Home
9. Daycare (<6 fulltime and 4 part-time)
10. Accessory apartment
11. Home occupation

Conditional Uses:

Gasoline and motor vehicle service stations

Public outdoor recreation

Private club

Enclosed accessory use

Planned Unit Development

Multifamily Dwellings

Daycare (>6 fulltime and 4 part-time)

Other uses with impacts similar to those noted above that do not significantly change the character of the area as envisioned in the Pantan Town Plan.

C. District Regulations

The provisions set forth in all prior articles of these regulations shall apply to this district when relevant. The permitted right and conditional uses shall be subject to the specific standards of Section 1004 A; the Development Review Board may waive setback requirements as part of a conditional use application.

Section 1004 A: Specific Regulations for NC-1 District

Lot area minimum: 1 acre (1 unit/acre)

Lot frontage minimum: 100 feet

Front yard minimum: 75 feet

Rear yard minimum: 30 feet

Side yard minimum (each side): 15 feet

Building height maximum: 35 feet